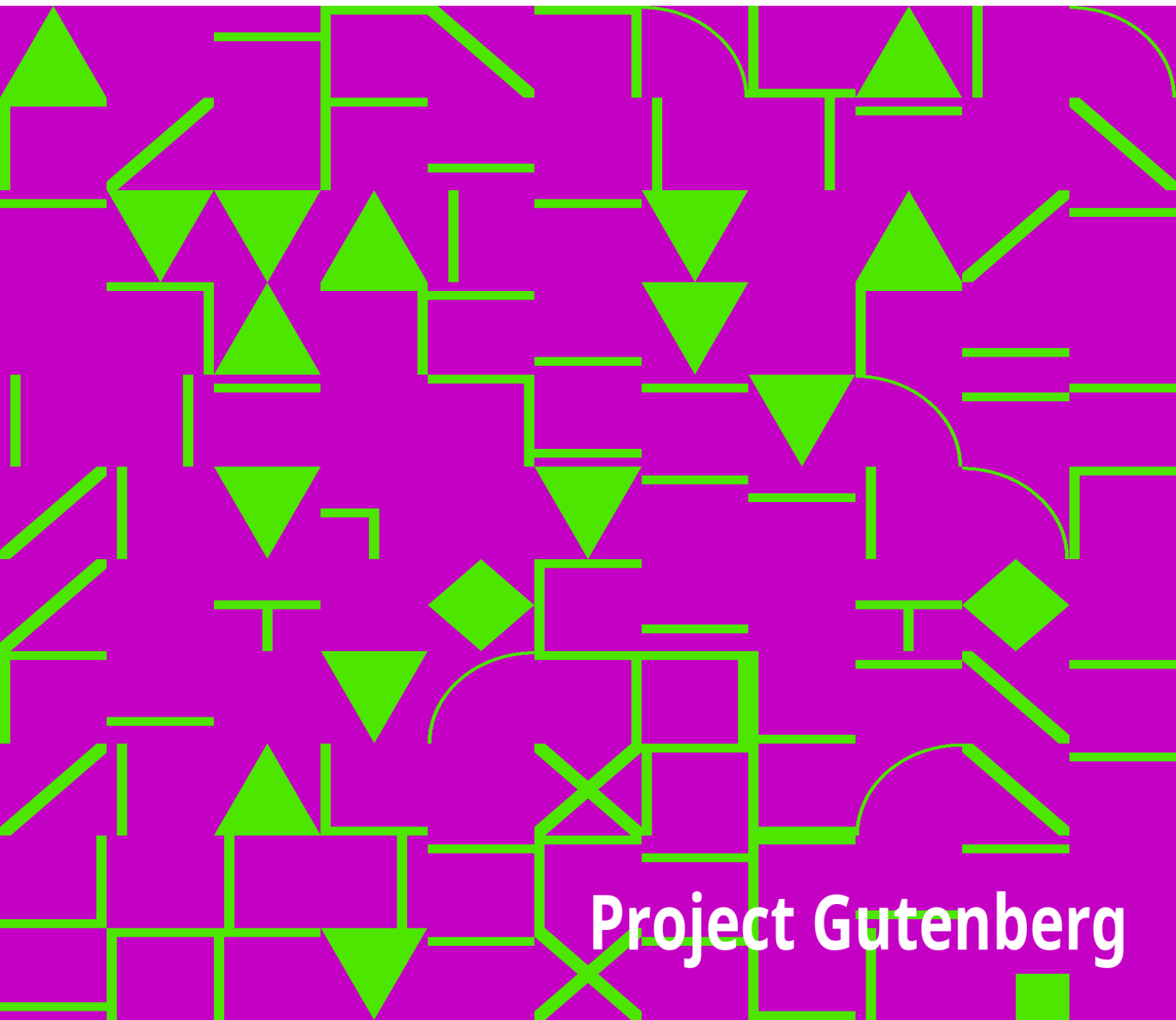
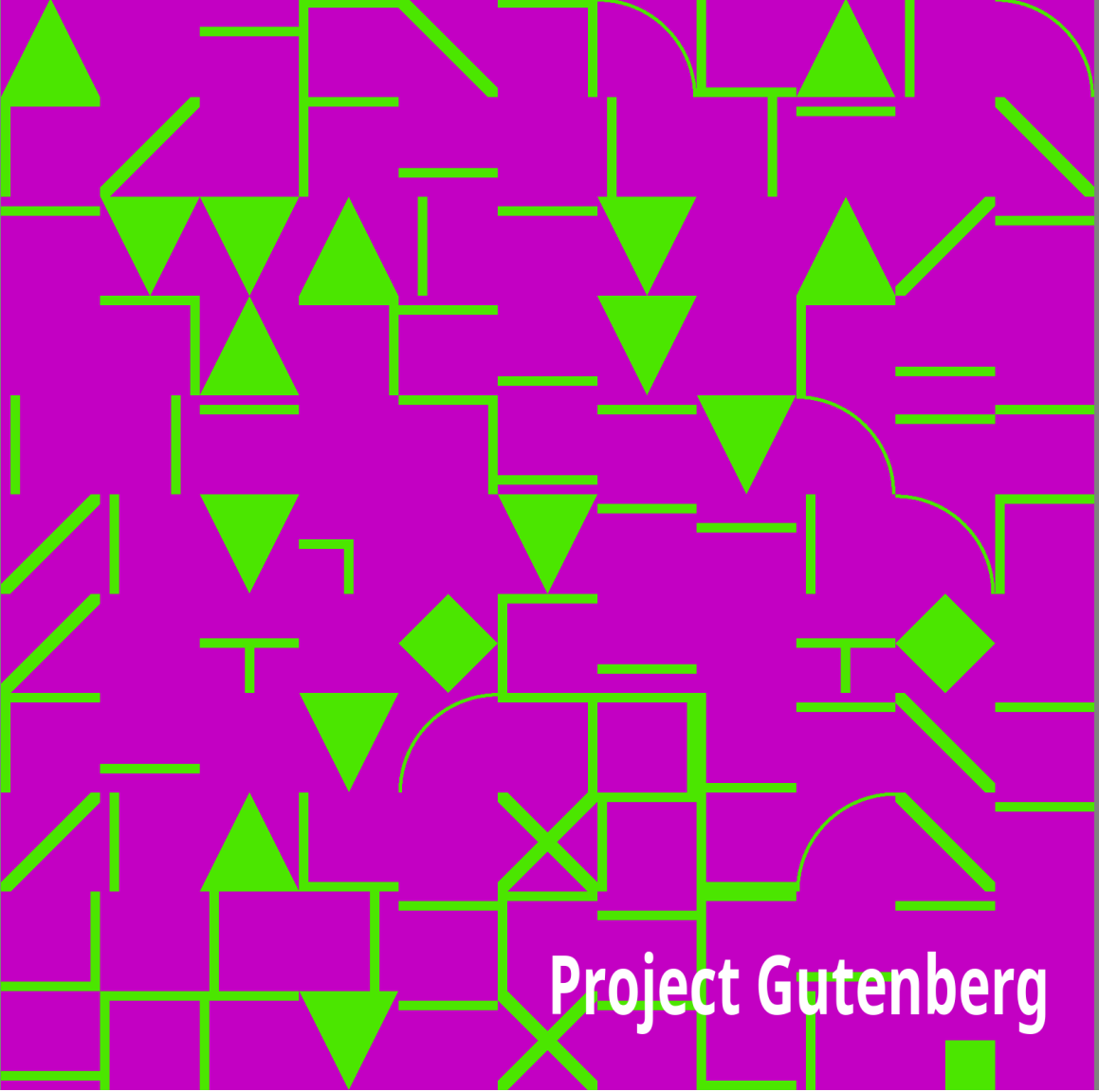


**A Compilation of the Messages and Papers
of the Presidents. Section 2 (of 2) of
Supplemental Volume: Theodore Roosevelt,
Theodore Roosevelt and James D.**



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COMPILATION OF THE MESSAGES AND PAPERS OF THE
PRESIDENTS. SECTION 2 (OF 2) OF SUPPLEMENTAL VOLUME:
THEODORE ROOSEVELT, SUPPLEMENT ***

**A COMPILATION OF THE
MESSAGES AND PAPERS OF
THE PRESIDENTS**

BY JAMES D. RICHARDSON

Theodore Roosevelt

September 14, 1901

**Messages, Proclamations, and Executive Orders to the end of
the Fifty-seventh Congress, First Session**

Theodore Roosevelt

Theodore Roosevelt, the twenty-seventh President of the United States, was born in the city of New York, October 27, 1858. His ancestors on the paternal side were of an old Knickerbocker family, and on the maternal side of Scotch-Irish descent. He was educated at home under private tuition and prepared for matriculation into Harvard, where he was graduated in 1880. He spent the year of 1881 in study and travel. During the years 1882-1884 he was an assemblyman in the legislature of New York. During this term of service he introduced the first civil service bill in the legislature in 1883, and its passage was almost simultaneous with the passage of the Civil Service Bill through Congress. In 1884 he was the Chairman of the delegation from New York to the National Republican Convention. He received the nomination for mayor of the city of New York in 1886 as an Independent, but was defeated. He was made Civil Service Commissioner by President Harrison in 1889 and served as president of the board until May, 1895. He resigned to become President of the New York Board of Police Commissioners in May, 1895. This position, in which the arduous duties were discharged with remarkable vigor and fearlessness, he resigned in 1897 to become Assistant Secretary of the Navy. On the breaking out of the Spanish-American War in 1898, he resigned on May 6, and, entering the army, organized the First United States Volunteer ("Rough Rider") Regiment of Cavalry, recommending Col. L.G. Wood to the command, and taking for himself the second-in-command as lieutenant-colonel. He had gained his military experience as a member of the Eighth Regiment of N.Y.N.G. from 1884-1888, during which time he rose to the rank of captain. The Rough Riders were embarked at Tampa, Fla., with the advance of Shafter's invading army, and sailed for Cuba on June 15, 1898. They participated in every engagement preceding the fall of Santiago. Theodore Roosevelt led the desperate charge of the Ninth Cavalry and the Rough Riders at the Battle of San Juan Hill on July 1. He was made a colonel on July 11. He received the nomination on September 27, 1898, for Governor of the State of New York, obtaining 753 votes, against 218 for Gov. Frank S. Black. At the election Theodore Roosevelt was supported by a majority

of the Independent Republicans and many Democrats, and defeated the Democratic candidate, Judge Augustus Van Wyck, by a plurality of 18,079. At the Republican Convention, held at Philadelphia in June, 1900, he was nominated for Vice-President, upon which he resigned the governorship of New York. Was elected Vice-President in November, 1900, and took the oath of office March 4, 1901. President McKinley was shot September 6, 1901, and died September 14. His Cabinet announced his death to the Vice-President, who took the oath of President at the residence of Mr. Ansley Wilcox in Buffalo, before Judge John R. Hazel, of the United States District Court, on September 14.

VICE-PRESIDENT ROOSEVELT'S INAUGURAL ADDRESS AS VICE-PRESIDENT.

The history of free government is in large part the history of those representative legislative bodies in which, from the earliest times, free government has found its loftiest expression. They must ever hold a peculiar and exalted position in the record which tells how the great nations of the world have endeavored to achieve and preserve orderly freedom. No man can render to his fellows greater service than is rendered by him who, with fearlessness and honesty, with sanity and disinterestedness, does his life work as a member of such a body. Especially is this the case when the legislature in which the service is rendered is a vital part in the governmental machinery of one of those world powers to whose hands, in the course of the ages, is intrusted a leading part in shaping the destinies of mankind. For weal or for woe, for good or for evil, this is true of our own mighty nation. Great privileges and great powers are ours, and heavy are the responsibilities that go with these privileges and these powers. Accordingly as we do well or ill, so shall mankind in the future be raised or cast down. We belong to a young nation, already of giant strength, yet whose political strength is but a forecast of the power that is to come. We stand supreme in a continent, in a hemisphere. East and west we look across the two great oceans toward the larger world life in which, whether we will or not, we must take an ever-increasing share. And as, keen-eyed, we gaze into the coming years, duties, new and old, rise thick and fast to confront us from within and from without. There is every reason why we should face these duties with a sober appreciation alike of their importance and of their difficulty. But there is also every reason for facing them with highhearted resolution and eager and confident faith in our capacity to do them aright. A great work lies already to the hand of this generation; it should count itself happy, indeed, that to it is given the privilege of doing such a work. A leading part therein must be taken by this the august and powerful legislative body over which I have been called upon to preside. Most deeply do I appreciate the privilege of my position; for high, indeed, is the honor of presiding over the American Senate at the outset of the twentieth century.

MARCH 4, 1901.

MESSAGE.

WHITE HOUSE, *December 3, 1901.*

To the Senate and House of Representatives:

The Congress assembles this year under the shadow of a great calamity. On the sixth of September, President McKinley was shot by an anarchist while attending the Pan-American Exposition at Buffalo, and died in that city on the fourteenth of that month.

Of the last seven elected Presidents, he is the third who has been murdered, and the bare recital of this fact is sufficient to justify grave alarm among all loyal American citizens. Moreover, the circumstances of this, the third assassination of an American President, have a peculiarly sinister significance. Both President Lincoln and President Garfield were killed by assassins of types unfortunately not uncommon in history; President Lincoln falling a victim to the terrible passions aroused by four years of civil war, and President Garfield to the revengeful vanity of a disappointed office-seeker. President McKinley was killed by an utterly depraved criminal belonging to that body of criminals who object to all governments, good and bad alike, who are against any form of popular liberty if it is guaranteed by even the most just and liberal laws, and who are as hostile to the upright exponent of a free people's sober will as to the tyrannical and irresponsible despot.

It is not too much to say that at the time of President McKinley's death he was the most widely loved man in all the United States; while we have never had any public man of his position who has been so wholly free from the bitter animosities incident to public life. His political opponents were the first to bear the heartiest and most generous tribute to the broad kindness of nature, the sweetness and gentleness of character which so endeared him to his close associates. To a standard of lofty integrity in public life he united the tender affections and home virtues which are all-important in the make-up of national character. A gallant soldier in the great war for the Union, he also shone as an example to all our people because of

his conduct in the most sacred and intimate of home relations. There could be no personal hatred of him, for he never acted with aught but consideration for the welfare of others. No one could fail to respect him who knew him in public or private life. The defenders of those murderous criminals who seek to excuse their criminality by asserting that it is exercised for political ends, inveigh against wealth and irresponsible power. But for this assassination even this base apology cannot be urged.

President McKinley was a man of moderate means, a man whose stock sprang from the sturdy tillers of the soil, who had himself belonged among the wage-workers, who had entered the Army as a private soldier. Wealth was not struck at when the President was assassinated, but the honest toil which is content with moderate gains after a lifetime of unremitting labor, largely in the service of the public. Still less was power struck at in the sense that power is irresponsible or centered in the hands of any one individual. The blow was not aimed at tyranny or wealth. It was aimed at one of the strongest champions the wage-worker has ever had; at one of the most faithful representatives of the system of public rights and representative government who has ever risen to public office. President McKinley filled that political office for which the entire people vote, and no President—not even Lincoln himself—was ever more earnestly anxious to represent the well thought-out wishes of the people; his one anxiety in every crisis was to keep in closest touch with the people—to find out what they thought and to endeavor to give expression to their thought, after having endeavored to guide that thought aright. He had just been re-elected to the Presidency because the majority of our citizens, the majority of our farmers and wage-workers, believed that he had faithfully upheld their interests for four years. They felt themselves in close and intimate touch with him. They felt that he represented so well and so honorably all their ideals and aspirations that they wished him to continue for another four years to represent them.

And this was the man at whom the assassin struck! That there might be nothing lacking to complete the Judas-like infamy of his act, he took advantage of an occasion when the President was meeting the people generally; and advancing as if to take the hand out-stretched to him in kindly and brotherly fellowship, he turned the noble and generous

confidence of the victim into an opportunity to strike the fatal blow. There is no baser deed in all the annals of crime.

The shock, the grief of the country, are bitter in the minds of all who saw the dark days, while the President yet hovered between life and death. At last the light was stilled in the kindly eyes and the breath went from the lips that even in mortal agony uttered no words save of forgiveness to his murderer, of love for his friends, and of unfaltering trust in the will of the Most High. Such a death, crowning the glory of such a life, leaves us with infinite sorrow, but with such pride in what he had accomplished and in his own personal character, that we feel the blow not as struck at him, but as struck at the Nation. We mourn a good and great President who is dead; but while we mourn we are lifted up by the splendid achievements of his life and the grand heroism with which he met his death.

When we turn from the man to the Nation, the harm done is so great as to excite our gravest apprehensions and to demand our wisest and most resolute action. This criminal was a professed anarchist, inflamed by the teachings of professed anarchists, and probably also by the reckless utterances of those who, on the stump and in the public press, appeal to the dark and evil spirits of malice and greed, envy and sullen hatred. The wind is sowed by the men who preach such doctrines, and they cannot escape their share of responsibility for the whirlwind that is reaped. This applies alike to the deliberate demagogue, to the exploiter of sensationalism, and to the crude and foolish visionary who, for whatever reason, apologizes for crime or excites aimless discontent.

The blow was aimed not at this President, but at all Presidents; at every symbol of government. President McKinley was as emphatically the embodiment of the popular will of the Nation expressed through the forms of law as a New England town meeting is in similar fashion the embodiment of the law-abiding purpose and practice of the people of the town. On no conceivable theory could the murder of the President be accepted as due to protest against "inequalities in the social order," save as the murder of all the freemen engaged in a town meeting could be accepted as a protest against that social inequality which puts a malefactor in jail. Anarchy is no more an expression of "social discontent" than picking pockets or wife-beating.

The anarchist, and especially the anarchist in the United States, is merely one type of criminal, more dangerous than any other because he represents the same depravity in a greater degree. The man who advocates anarchy directly or indirectly, in any shape or fashion, or the man who apologizes for anarchists and their deeds, makes himself morally accessory to murder before the fact. The anarchist is a criminal whose perverted instincts lead him to prefer confusion and chaos to the most beneficent form of social order. His protest of concern for workingmen is outrageous in its impudent falsity; for if the political institutions of this country do not afford opportunity to every honest and intelligent son of toil, then the door of hope is forever closed against him. The anarchist is everywhere not merely the enemy of system and of progress, but the deadly foe of liberty. If ever anarchy is triumphant, its triumph will last for but one red moment, to be succeeded for ages by the gloomy night of despotism.

For the anarchist himself, whether he preaches or practices his doctrines, we need not have one particle more concern than for any ordinary murderer. He is not the victim of social or political injustice. There are no wrongs to remedy in his case. The cause of his criminality is to be found in his own evil passions and in the evil conduct of those who urge him on, not in any failure by others or by the State to do justice to him or his. He is a malefactor and nothing else. He is in no sense, in no shape or way, a "product of social conditions," save as a highwayman is "produced" by the fact that an unarmed man happens to have a purse. It is a travesty upon the great and holy names of liberty and freedom to permit them to be invoked in such a cause. No man or body of men preaching anarchistic doctrines should be allowed at large any more than if preaching the murder of some specified private individual. Anarchistic speeches, writings, and meetings are essentially seditious and treasonable.

I earnestly recommend to the Congress that in the exercise of its wise discretion it should take into consideration the coming to this country of anarchists or persons professing principles hostile to all government and justifying the murder of those placed in authority. Such individuals as those who not long ago gathered in open meeting to glorify the murder of King Humbert of Italy perpetrate a crime, and the law should ensure their rigorous punishment. They and those like them should be kept out of this country; and if found here they should be promptly deported to the country

whence they came; and far-reaching provision should be made for the punishment of those who stay. No matter calls more urgently for the wisest thought of the Congress.

The Federal courts should be given jurisdiction over any man who kills or attempts to kill the President or any man who by the Constitution or by law is in line of succession for the Presidency, while the punishment for an unsuccessful attempt should be proportioned to the enormity of the offense against our institutions.

Anarchy is a crime against the whole human race; and all mankind should band against the anarchist. His crime should be made an offense against the law of nations, like piracy and that form of man-stealing known as the slave trade; for it is of far blacker infamy than either. It should be so declared by treaties among all civilized powers. Such treaties would give to the Federal Government the power of dealing with the crime.

A grim commentary upon the folly of the anarchist position was afforded by the attitude of the law toward this very criminal who had just taken the life of the President. The people would have torn him limb from limb if it had not been that the law he defied was at once invoked in his behalf. So far from his deed being committed on behalf of the people against the Government, the Government was obliged at once to exert its full police power to save him from instant death at the hands of the people. Moreover, his deed worked not the slightest dislocation in our governmental system, and the danger of a recurrence of such deeds, no matter how great it might grow, would work only in the direction of strengthening and giving harshness to the forces of order. No man will ever be restrained from becoming President by any fear as to his personal safety. If the risk to the President's life became great, it would mean that the office would more and more come to be filled by men of a spirit which would make them resolute and merciless in dealing with every friend of disorder. This great country will not fall into anarchy, and if anarchists should ever become a serious menace to its institutions, they would not merely be stamped out, but would involve in their own ruin every active or passive sympathizer with their doctrines. The American people are slow to wrath, but when their wrath is once kindled it burns like a consuming flame.

During the last five years business confidence has been restored, and the nation is to be congratulated because of its present abounding prosperity. Such prosperity can never be created by law alone, although it is easy enough to destroy it by mischievous laws. If the hand of the Lord is heavy upon any country, if flood or drought comes, human wisdom is powerless to avert the calamity. Moreover, no law can guard us against the consequences of our own folly. The men who are idle or credulous, the men who seek gains not by genuine work with head or hand but by gambling in any form, are always a source of menace not only to themselves but to others. If the business world loses its head, it loses what legislation cannot supply. Fundamentally the welfare of each citizen, and therefore the welfare of the aggregate of citizens which makes the nation, must rest upon individual thrift and energy, resolution, and intelligence. Nothing can take the place of this individual capacity; but wise legislation and honest and intelligent administration can give it the fullest scope, the largest opportunity to work to good effect.

The tremendous and highly complex industrial development which went on with ever accelerated rapidity during the latter half of the nineteenth century brings us face to face, at the beginning of the twentieth, with very serious social problems. The old laws, and the old customs which had almost the binding force of law, were once quite sufficient to regulate the accumulation and distribution of wealth. Since the industrial changes which have so enormously increased the productive power of mankind, they are no longer sufficient.

The growth of cities has gone on beyond comparison faster than the growth of the country, and the upbuilding of the great industrial centers has meant a startling increase, not merely in the aggregate of wealth, but in the number of very large individual, and especially of very large corporate, fortunes. The creation of these great corporate fortunes has not been due to the tariff nor to any other governmental action, but to natural causes in the business world, operating in other countries as they operate in our own.

The process has aroused much antagonism, a great part of which is wholly without warrant. It is not true that as the rich have grown richer the poor have grown poorer. On the contrary, never before has the average man, the wage-worker, the farmer, the small trader, been so well off as in this

country and at the present time. There have been abuses connected with the accumulation of wealth; yet it remains true that a fortune accumulated in legitimate business can be accumulated by the person specially benefited only on condition of conferring immense incidental benefits upon others. Successful enterprise, of the type which benefits all mankind, can only exist if the conditions are such as to offer great prizes as the rewards of success.

The captains of industry who have driven the railway systems across this continent, who have built up our commerce, who have developed our manufactures, have on the whole done great good to our people. Without them the material development of which we are so justly proud could never have taken place. Moreover, we should recognize the immense importance of this material development of leaving as unhampered as is compatible with the public good the strong and forceful men upon whom the success of business operations inevitably rests. The slightest study of business conditions will satisfy anyone capable of forming a judgment that the personal equation is the most important factor in a business operation; that the business ability of the man at the head of any business concern, big or little, is usually the factor which fixes the gulf between striking success and hopeless failure.

An additional reason for caution in dealing with corporations is to be found in the international commercial conditions of today. The same business conditions which have produced the great aggregations of corporate and individual wealth have made them very potent factors in international commercial competition. Business concerns which have the largest means at their disposal and are managed by the ablest men are naturally those which take the lead in the strife for commercial supremacy among the nations of the world. America has only just begun to assume that commanding position in the international business world which we believe will more and more be hers. It is of the utmost importance that this position be not jeopardized, especially at a time when the overflowing abundance of our own natural resources and the skill, business energy, and mechanical aptitude of our people make foreign markets essential. Under such conditions it would be most unwise to cramp or to fetter the youthful strength of our Nation.

Moreover, it cannot too often be pointed out that to strike with ignorant violence at the interests of one set of men almost inevitably endangers the interests of all. The fundamental rule in our national life—the rule which underlies all others—is that, on the whole, and in the long run, we shall go up or down together. There are exceptions; and in times of prosperity some will prosper far more, and in times of adversity, some will suffer far more, than others; but speaking generally, a period of good times means that all share more or less in them, and in a period of hard times all feel the stress to a greater or less degree. It surely ought not to be necessary to enter into any proof of this statement; the memory of the lean years which began in 1893 is still vivid, and we can contrast them with the conditions in this very year which is now closing. Disaster to great business enterprises can never have its effects limited to the men at the top. It spreads through-out, and while it is bad for everybody, it is worst for those farthest down. The capitalist may be shorn of his luxuries; but the wage-worker may be deprived of even bare necessities.

The mechanism of modern business is so delicate that extreme care must be taken not to interfere with it in a spirit of rashness or ignorance. Many of those who have made it their vocation to denounce the great industrial combinations which are popularly, although with technical inaccuracy, known as "trusts," appeal especially to hatred and fear. These are precisely the two emotions, particularly when combined with ignorance, which unfit men for the exercise of cool and steady judgment. In facing new industrial conditions, the whole history of the world shows that legislation will generally be both unwise and ineffective unless undertaken after calm inquiry and with sober self-restraint. Much of the legislation directed at the trusts would have been exceedingly mischievous had it not also been entirely ineffective. In accordance with a well-known sociological law, the ignorant or reckless agitator has been the really effective friend of the evils which he has been nominally opposing. In dealing with business interests, for the Government to undertake by crude and ill-considered legislation to do what may turn out to be bad, would be to incur the risk of such far-reaching national disaster that it would be preferable to undertake nothing at all. The men who demand the impossible or the undesirable serve as the allies of the forces with which they are nominally at war, for they hamper those who would endeavor to find out in rational fashion what the wrongs

really are and to what extent and in what manner it is practicable to apply remedies.

All this is true; and yet it is also true that there are real and grave evils, one of the chief being over-capitalization because of its many baleful consequences; and a resolute and practical effort must be made to correct these evils.

There is a widespread conviction in the minds of the American people that the great corporations known as trusts are in certain of their features and tendencies hurtful to the general welfare. This springs from no spirit of envy or uncharitableness, nor lack of pride in the great industrial achievements that have placed this country at the head of the nations struggling for commercial supremacy. It does not rest upon a lack of intelligent appreciation of the necessity of meeting changing and changed conditions of trade with new methods, nor upon ignorance of the fact that combination of capital in the effort to accomplish great things is necessary when the world's progress demands that great things be done. It is based upon sincere conviction that combination and concentration should be, not prohibited, but supervised and within reasonable limits controlled; and in my judgment this conviction is right.

It is no limitation upon property rights or freedom of contract to require that when men receive from Government the privilege of doing business under corporate form, which frees them from individual responsibility, and enables them to call into their enterprises the capital of the public, they shall do so upon absolutely truthful representations as to the value of the property in which the capital is to be invested. Corporations engaged in interstate commerce should be regulated if they are found to exercise a license working to the public injury. It should be as much the aim of those who seek for social betterment to rid the business world of crimes of cunning as to rid the entire body politic of crimes of violence. Great corporations exist only because they are created and safeguarded by our institutions; and it is therefore our right and our duty to see that they work in harmony with these institutions.

The first essential in determining how to deal with the great industrial combinations is knowledge of the facts—publicity. In the interest of the

public, the Government should have the right to inspect and examine the workings of the great corporations engaged in interstate business. Publicity is the only sure remedy which we can now invoke. What further remedies are needed in the way of governmental regulation, or taxation, can only be determined after publicity has been obtained, by process of law, and in the course of administration. The first requisite is knowledge, full and complete—knowledge which may be made public to the world.

Artificial bodies, such as corporations and joint stock or other associations, depending upon any statutory law for their existence or privileges, should be subject to proper governmental supervision, and full and accurate information as to their operations should be made public regularly at reasonable intervals.

The large corporations, commonly called trusts, though organized in one State, always do business in many States, often doing very little business in the State where they are incorporated. There is utter lack of uniformity in the State laws about them; and as no State has any exclusive interest in or power over their acts, it has in practice proved impossible to get adequate regulation through State action. Therefore, in the interest of the whole people, the Nation should, without interfering with the power of the States in the matter itself, also assume power of supervision and regulation over all corporations doing an interstate business. This is especially true where the corporation derives a portion of its wealth from the existence of some monopolistic element or tendency in its business. There would be no hardship in such supervision; banks are subject to it, and in their case it is now accepted as a simple matter of course. Indeed, it is probable that supervision of corporations by the National Government need not go so far as is now the case with the supervision exercised over them by so conservative a State as Massachusetts, in order to produce excellent results.

When the Constitution was adopted, at the end of the eighteenth century, no human wisdom could foretell the sweeping changes, alike in industrial and political conditions, which were to take place by the beginning of the twentieth century. At that time it was accepted as a matter of course that the several States were the proper authorities to regulate, so far as was then necessary, the comparatively insignificant and strictly localized corporate bodies of the day. The conditions are now wholly different and wholly

different action is called for. I believe that a law can be framed which will enable the National Government to exercise control along the lines above indicated; profiting by the experience gained through the passage and administration of the Interstate-Commerce Act. If, however, the judgment of the Congress is that it lacks the constitutional power to pass such an act, then a constitutional amendment should be submitted to confer the power.

There should be created a Cabinet officer, to be known as Secretary of Commerce and Industries, as provided in the bill introduced at the last session of the Congress. It should be his province to deal with commerce in its broadest sense; including among many other things whatever concerns labor and all matters affecting the great business corporations and our merchant marine.

The course proposed is one phase of what should be a comprehensive and far-reaching scheme of constructive statesmanship for the purpose of broadening our markets, securing our business interests on a safe basis, and making firm our new position in the international industrial world; while scrupulously safeguarding the rights of wage-worker and capitalist, of investor and private citizen, so as to secure equity as between man and man in this Republic.

With the sole exception of the farming interest, no one matter is of such vital moment to our whole people as the welfare of the wage-workers. If the farmer and the wage-worker are well off, it is absolutely certain that all others will be well off too. It is therefore a matter for hearty congratulation that on the whole wages are higher to-day in the United States than ever before in our history, and far higher than in any other country. The standard of living is also higher than ever before. Every effort of legislator and administrator should be bent to secure the permanency of this condition of things and its improvement wherever possible. Not only must our labor be protected by the tariff, but it should also be protected so far as it is possible from the presence in this country of any laborers brought over by contract, or of those who, coming freely, yet represent a standard of living so depressed that they can undersell our men in the labor market and drag them to a lower level. I regard it as necessary, with this end in view, to re-enact immediately the law excluding Chinese laborers and to strengthen it wherever necessary in order to make its enforcement entirely effective.

The National Government should demand the highest quality of service from its employees; and in return it should be a good employer. If possible legislation should be passed, in connection with the Interstate Commerce Law, which will render effective the efforts of different States to do away with the competition of convict contract labor in the open labor market. So far as practicable under the conditions of Government work, provision should be made to render the enforcement of the eight-hour law easy and certain. In all industries carried on directly or indirectly for the United States Government women and children should be protected from excessive hours of labor, from night work, and from work under unsanitary conditions. The Government should provide in its contracts that all work should be done under "fair" conditions, and in addition to setting a high standard should uphold it by proper inspection, extending if necessary to the subcontractors. The Government should forbid all night work for women and children, as well as excessive overtime. For the District of Columbia a good factory law should be passed; and, as a powerful indirect aid to such laws, provision should be made to turn the inhabited alleys, the existence of which is a reproach to our Capital city, into minor streets, where the inhabitants can live under conditions favorable to health and morals.

American wage-workers work with their heads as well as their hands. Moreover, they take a keen pride in what they are doing; so that, independent of the reward, they wish to turn out a perfect job. This is the great secret of our success in competition with the labor of foreign countries.

The most vital problem with which this country, and for that matter the whole civilized world, has to deal, is the problem which has for one side the betterment of social conditions, moral and physical, in large cities, and for another side the effort to deal with that tangle of far-reaching questions which we group together when we speak of "labor." The chief factor in the success of each man—wage-worker, farmer, and capitalist alike—must ever be the sum total of his own individual qualities and abilities. Second only to this comes the power of acting in combination or association with others. Very great good has been and will be accomplished by associations or unions of wage-workers, when managed with forethought, and when they combine insistence upon their own rights with law-abiding respect for the

rights of others. The display of these qualities in such bodies is a duty to the nation no less than to the associations themselves. Finally, there must also in many cases be action by the Government in order to safeguard the rights and interests of all. Under our Constitution there is much more scope for such action by the State and the municipality than by the nation. But on points such as those touched on above the National Government can act.

When all is said and done, the rule of brotherhood remains as the indispensable prerequisite to success in the kind of national life for which we strive. Each man must work for himself, and unless he so works no outside help can avail him; but each man must remember also that he is indeed his brother's keeper, and that while no man who refuses to walk can be carried with advantage to himself or anyone else, yet that each at times stumbles or halts, that each at times needs to have the helping hand outstretched to him. To be permanently effective, aid must always take the form of helping a man to help himself; and we can all best help ourselves by joining together in the work that is of common interest to all.

Our present immigration laws are unsatisfactory. We need every honest and efficient immigrant fitted to become an American citizen, every immigrant who comes here to stay, who brings here a strong body, a stout heart, a good head, and a resolute purpose to do his duty well in every way and to bring up his children as law-abiding and God-fearing members of the community. But there should be a comprehensive law enacted with the object of working a threefold improvement over our present system. First, we should aim to exclude absolutely not only all persons who are known to be believers in anarchistic principles or members of anarchistic societies, but also all persons who are of a low moral tendency or of unsavory reputation. This means that we should require a more thorough system of inspection abroad and a more rigid system of examination at our immigration ports, the former being especially necessary.

The second object of a proper immigration law ought to be to secure by a careful and not merely perfunctory educational test some intelligent capacity to appreciate American institutions and act sanely as American citizens. This would not keep out all anarchists, for many of them belong to the intelligent criminal class. But it would do what is also in point, that is, tend to decrease the sum of ignorance, so potent in producing the envy,

suspicion, malignant passion, and hatred of order, out of which anarchistic sentiment inevitably springs. Finally, all persons should be excluded who are below a certain standard of economic fitness to enter our industrial field as competitors with American labor. There should be proper proof of personal capacity to earn an American living and enough money to insure a decent start under American conditions. This would stop the influx of cheap labor, and the resulting competition which gives rise to so much of bitterness in American industrial life; and it would dry up the springs of the pestilential social conditions in our great cities, where anarchistic organizations have their greatest possibility of growth.

Both the educational and economic tests in a wise immigration law should be designed to protect and elevate the general body politic and social. A very close supervision should be exercised over the steamship companies which mainly bring over the immigrants, and they should be held to a strict accountability for any infraction of the law.

There is general acquiescence in our present tariff system as a national policy. The first requisite to our prosperity is the continuity and stability of this economic policy. Nothing could be more unwise than to disturb the business interests of the country by any general tariff change at this time. Doubt, apprehension, uncertainty are exactly what we most wish to avoid in the interest of our commercial and material well-being. Our experience in the past has shown that sweeping revisions of the tariff are apt to produce conditions closely approaching panic in the business world. Yet it is not only possible, but eminently desirable, to combine with the stability of our economic system a supplementary system of reciprocal benefit and obligation with other nations. Such reciprocity is an incident and result of the firm establishment and preservation of our present economic policy. It was specially provided for in the present tariff law.

Reciprocity must be treated as the handmaiden of protection. Our first duty is to see that the protection granted by the tariff in every case where it is needed is maintained, and that reciprocity be sought for so far as it can safely be done without injury to our home industries. Just how far this is must be determined according to the individual case, remembering always that every application of our tariff policy to meet our shifting national needs must be conditioned upon the cardinal fact that the duties must never be

reduced below the point that will cover the difference between the labor cost here and abroad. The well-being of the wage-worker is a prime consideration of our entire policy of economic legislation.

Subject to this proviso of the proper protection necessary to our industrial well-being at home, the principle of reciprocity must command our hearty support. The phenomenal growth of our export trade emphasizes the urgency of the need for wider markets and for a liberal policy in dealing with foreign nations. Whatever is merely petty and vexatious in the way of trade restrictions should be avoided. The customers to whom we dispose of our surplus products in the long run, directly or indirectly, purchase those surplus products by giving us something in return. Their ability to purchase our products should as far as possible be secured by so arranging our tariff as to enable us to take from them those products which we can use without harm to our own industries and labor, or the use of which will be of marked benefit to us.

It is most important that we should maintain the high level of our present prosperity. We have now reached the point in the development of our interests where we are not only able to supply our own markets but to produce a constantly growing surplus for which we must find markets abroad. To secure these markets we can utilize existing duties in any case where they are no longer needed for the purpose of protection, or in any case where the article is not produced here and the duty is no longer necessary for revenue, as giving us something to offer in exchange for what we ask. The cordial relations with other nations which are so desirable will naturally be promoted by the course thus required by our own interests.

The natural line of development for a policy of reciprocity will be in connection with those of our productions which no longer require all of the support once needed to establish them upon a sound basis, and with those others where either because of natural or of economic causes we are beyond the reach of successful competition.

I ask the attention of the Senate to the reciprocity treaties laid before it by my predecessor.

The condition of the American merchant marine is such as to call for immediate remedial action by the Congress. It is discreditable to us as a

Nation that our merchant marine should be utterly insignificant in comparison to that of other nations which we overtop in other forms of business. We should not longer submit to conditions under which only a trifling portion of our great commerce is carried in our own ships. To remedy this state of things would not merely serve to build up our shipping interests, but it would also result in benefit to all who are interested in the permanent establishment of a wider market for American products, and would provide an auxiliary force for the Navy. Ships work for their own countries just as railroads work for their terminal points. Shipping lines, if established to the principal countries with which we have dealings, would be of political as well as commercial benefit. From every standpoint it is unwise for the United States to continue to rely upon the ships of competing nations for the distribution of our goods. It should be made advantageous to carry American goods in American-built ships.

At present American shipping is under certain great disadvantages when put in competition with the shipping of foreign countries. Many of the fast foreign steamships, at a speed of fourteen knots or above, are subsidized; and all our ships, sailing vessels and steamers alike, cargo carriers of slow speed and mail carriers of high speed, have to meet the fact that the original cost of building American ships is greater than is the case abroad; that the wages paid American officers and seamen are very much higher than those paid the officers and seamen of foreign competing countries; and that the standard of living on our ships is far superior to the standard of living on the ships of our commercial rivals.

Our Government should take such action as will remedy these inequalities. The American merchant marine should be restored to the ocean.

The Act of March 14, 1900, intended unequivocally to establish gold as the standard money and to maintain at a parity therewith all forms of money medium in use with us, has been shown to be timely and judicious. The price of our Government bonds in the world's market, when compared with the price of similar obligations issued by other nations, is a flattering tribute to our public credit. This condition it is evidently desirable to maintain

In many respects the National Banking Law furnishes sufficient liberty for the proper exercise of the banking function; but there seems to be need of better safeguards against the deranging influence of commercial crises and financial panics. Moreover, the currency of the country should be made responsive to the demands of our domestic trade and commerce.

The collections from duties on imports and internal taxes continue to exceed the ordinary expenditures of the Government, thanks mainly to the reduced army expenditures. The utmost care should be taken not to reduce the revenues so that there will be any possibility of a deficit; but, after providing against any such contingency, means should be adopted which will bring the revenues more nearly within the limit of our actual needs. In his report to the Congress the Secretary of the Treasury considers all these questions at length, and I ask your attention to the report and recommendations.

I call special attention to the need of strict economy in expenditures. The fact that our national needs forbid us to be niggardly in providing whatever is actually necessary to our well-being, should make us doubly careful to husband our national resources, as each of us husbands his private resources, by scrupulous avoidance of anything like wasteful or reckless expenditure. Only by avoidance of spending money on what is needless or unjustifiable can we legitimately keep our income to the point required to meet our needs that are genuine.

In 1887 a measure was enacted for the regulation of interstate railways, commonly known as the Interstate Commerce Act. The cardinal provisions of that act were that railway rates should be just and reasonable and that all shippers, localities, and commodities should be accorded equal treatment. A commission was created and endowed with what were supposed to be the necessary powers to execute the provisions of this act.

That law was largely an experiment. Experience has shewn the wisdom of its purposes, but has also shown, possibly that some of its requirements are wrong, certainly that the means devised for the enforcement of its provisions are defective. Those who complain of the management of the railways allege that established rates are not maintained; that rebates and similar devices are habitually resorted to; that these preferences are usually

in favor of the large shipper; that they drive out of business the smaller competitor; that while many rates are too low, many others are excessive; and that gross preferences are made, affecting both localities and commodities. Upon the other hand, the railways assert that the law by its very terms tends to produce many of these illegal practices by depriving carriers of that right of concerted action which they claim is necessary to establish and maintain non-discriminating rates.

The act should be amended. The railway is a public servant. Its rates should be just to and open to all shippers alike. The Government should see to it that within its jurisdiction this is so and should provide a speedy, inexpensive, and effective remedy to that end. At the same time it must not be forgotten that our railways are the arteries through which the commercial lifeblood of this Nation flows. Nothing could be more foolish than the enactment of legislation which would unnecessarily interfere with the development and operation of these commercial agencies. The subject is one of great importance and calls for the earnest attention of the Congress.

The Department of Agriculture during the past fifteen years has steadily broadened its work on economic lines, and has accomplished results of real value in upbuilding domestic and foreign trade. It has gone into new fields until it is now in touch with all sections of our country and with two of the island groups that have lately come under our jurisdiction, whose people must look to agriculture as a livelihood. It is searching the world for grains, grasses, fruits, and vegetables specially fitted for introduction into localities in the several States and Territories where they may add materially to our resources. By scientific attention to soil survey and possible new crops, to breeding of new varieties of plants, to experimental shipments, to animal industry and applied chemistry, very practical aid has been given our farming and stock-growing interests. The products of the farm have taken an unprecedented place in our export trade during the year that has just closed.

Public opinion throughout the United States has moved steadily toward a just appreciation of the value of forests, whether planted or of natural growth. The great part played by them in the creation and maintenance of the national wealth is now more fully realized than ever before.

Wise forest protection does not mean the withdrawal of forest resources, whether of wood, water, or grass, from contributing their full share to the welfare of the people, but, on the contrary, gives the assurance of larger and more certain supplies. The fundamental idea of forestry is the perpetuation of forests by use. Forest protection is not an end of itself; it is a means to increase and sustain the resources of our country and the industries which depend upon them. The preservation of our forests is an imperative business necessity. We have come to see clearly that whatever destroys the forest, except to make way for agriculture, threatens our well being.

The practical usefulness of the national forest reserves to the mining, grazing, irrigation, and other interests of the regions in which the reserves lie has led to a widespread demand by the people of the West for their protection and extension. The forest reserves will inevitably be of still greater use in the future than in the past. Additions should be made to them whenever practicable, and their usefulness should be increased by a thoroughly business-like management.

At present the protection of the forest reserves rests with the General Land Office, the mapping and description of their timber with the United States Geological Survey, and the preparation of plans for their conservative use with the Bureau of Forestry, which is also charged with the general advancement of practical forestry in the United States. These various functions should be united in the Bureau of Forestry, to which they properly belong. The present diffusion of responsibility is bad from every standpoint. It prevents that effective co-operation between the Government and the men who utilize the resources of the reserves, without which the interests of both must suffer. The scientific bureaus generally should be put under the Department of Agriculture. The President should have by law the power of transferring lands for use as forest reserves to the Department of Agriculture. He already has such power in the case of lands needed by the Departments of War and the Navy.

The wise administration of the forest reserves will be not less helpful to the interests which depend on water than to those which depend on wood and grass. The water supply itself depends upon the forest. In the arid region it is water, not land, which measures production. The western half of the United States would sustain a population greater than that of our whole

country to-day if the waters that now run to waste were saved and used for irrigation. The forest and water problems are perhaps the most vital internal questions of the United States.

Certain of the forest reserves should also be made preserves for the wild forest creatures. All of the reserves should be better protected from fires. Many of them need special protection because of the great injury done by live stock, above all by sheep. The increase in deer, elk, and other animals in the Yellowstone Park shows what may be expected when other mountain forests are properly protected by law and properly guarded. Some of these areas have been so denuded of surface vegetation by overgrazing that the ground breeding birds, including grouse and quail, and many mammals, including deer, have been exterminated or driven away. At the same time the water-storing capacity of the surface has been decreased or destroyed, thus promoting floods in times of rain and diminishing the flow of streams between rains.

In cases where natural conditions have been restored for a few years, vegetation has again carpeted the ground, birds and deer are coming back, and hundreds of persons, especially from the immediate neighborhood, come each summer to enjoy the privilege of camping. Some at least of the forest reserves should afford perpetual protection to the native fauna and flora, safe havens of refuge to our rapidly diminishing wild animals of the larger kinds, and free camping grounds for the ever-increasing numbers of men and women who have learned to find rest, health, and recreation in the splendid forests and flower-clad meadows of our mountains. The forest reserves should be set apart forever for the use and benefit of our people as a whole and not sacrificed to the shortsighted greed of a few.

The forests are natural reservoirs. By restraining the streams in flood and replenishing them in drought they make possible the use of waters otherwise wasted. They prevent the soil from washing, and so protect the storage reservoirs from filling up with silt. Forest conservation is therefore an essential condition of water conservation.

The forests alone cannot, however, fully regulate and conserve the waters of the arid region. Great storage works are necessary to equalize the flow of streams and to save the flood waters. Their construction has been

conclusively shown to be an undertaking too vast for private effort. Nor can it be best accomplished by the individual States acting alone. Far-reaching interstate problems are involved; and the resources of single States would often be inadequate. It is properly a national function, at least in some of its features. It is as right for the National Government to make the streams and rivers of the arid region useful by engineering works for water storage as to make useful the rivers and harbors of the humid region by engineering works of another kind. The storing of the floods in reservoirs at the headwaters of our rivers is but an enlargement of our present policy of river control, under which levees are built on the lower reaches of the same streams.

The Government should construct and maintain these reservoirs as it does other public works. Where their purpose is to regulate the flow of streams, the water should be turned freely into the channels in the dry season to take the same course under the same laws as the natural flow.

The reclamation of the unsettled arid public lands presents a different problem. Here it is not enough to regulate the flow of streams. The object of the Government is to dispose of the land to settlers who will build homes upon it. To accomplish this object water must be brought within their reach.

The pioneer settlers on the arid public domain chose their homes along streams from which they could themselves divert the water to reclaim their holdings. Such opportunities are practically gone. There remain, however, vast areas of public land which can be made available for homestead settlement, but only by reservoirs and main-line canals impracticable for private enterprise. These irrigation works should be built by the National Government. The lands reclaimed by them should be reserved by the Government for actual settlers, and the cost of construction should so far as possible be repaid by the land reclaimed. The distribution of the water, the division of the streams among irrigators, should be left to the settlers themselves in conformity with State laws and without interference with those laws or with vested rights. The policy of the National Government should be to aid irrigation in the several States and Territories in such manner as will enable the people in the local communities to help themselves, and as will stimulate needed reforms in the State laws and regulations governing irrigation.

The reclamation and settlement of the arid lands will enrich every portion of our country, just as the settlement of the Ohio and Mississippi valleys brought prosperity to the Atlantic States. The increased demand for manufactured articles will stimulate industrial production, while wider home markets and the trade of Asia will consume the larger food supplies and effectually prevent Western competition with Eastern agriculture. Indeed, the products of irrigation will be consumed chiefly in upbuilding local centers of mining and other industries, which would otherwise not come into existence at all. Our people as a whole will profit, for successful home-making is but another name for the upbuilding of the nation.

The necessary foundation has already been laid for the inauguration of the policy just described. It would be unwise to begin by doing too much, for a great deal will doubtless be learned, both as to what can and what cannot be safely attempted, by the early efforts, which must of necessity be partly experimental in character. At the very beginning the Government should make clear, beyond shadow of doubt, its intention to pursue this policy on lines of the broadest public interest. No reservoir or canal should ever be built to satisfy selfish personal or local interests; but only in accordance with the advice of trained experts, after long investigation has shown the locality where all the conditions combine to make the work most needed and fraught with the greatest usefulness to the community as a whole. There should be no extravagance, and the believers in the need of irrigation will most benefit their cause by seeing to it that it is free from the least taint of excessive or reckless expenditure of the public moneys.

Whatever the nation does for the extension of irrigation should harmonize with, and tend to improve, the condition of those now living on irrigated land. We are not at the starting point of this development. Over two hundred millions of private capital has already been expended in the construction of irrigation works, and many million acres of arid land reclaimed. A high degree of enterprise and ability has been shown in the work itself; but as much cannot be said in reference to the laws relating thereto. The security and value of the homes created depend largely on the stability of titles to water; but the majority of these rest on the uncertain foundation of court decisions rendered in ordinary suits at law. With a few creditable exceptions, the arid States have failed to provide for the certain and just division of streams in times of scarcity. Lax and uncertain laws

have made it possible to establish rights to water in excess of actual uses or necessities, and many streams have already passed into private ownership, or a control equivalent to ownership.

Whoever controls a stream practically controls the land it renders productive, and the doctrine of private ownership of water apart from land cannot prevail without causing enduring wrong. The recognition of such ownership, which has been permitted to grow up in the arid regions, should give way to a more enlightened and larger recognition of the rights of the public in the control and disposal of the public water supplies. Laws founded upon conditions obtaining in humid regions, where water is too abundant to justify hoarding it, have no proper application in a dry country.

In the arid States the only right to water which should be recognized is that of use. In irrigation this right should attach to the land reclaimed and be inseparable therefrom. Granting perpetual water rights to others than users, without compensation to the public, is open to all the objections which apply to giving away perpetual franchises to the public utilities of cities. A few of the Western States have already recognized this, and have incorporated in their constitutions the doctrine of perpetual State ownership of water.

The benefits which have followed the unaided development of the past justify the nation's aid and co-operation in the more difficult and important work yet to be accomplished. Laws so vitally affecting homes as those which control the water supply will only be effective when they have the sanction of the irrigators; reforms can only be final and satisfactory when they come through the enlightenment of the people most concerned. The larger development which national aid insures should, however, awaken in every arid State the determination to make its irrigation system equal in justice and effectiveness that of any country in the civilized world. Nothing could be more unwise than for isolated communities to continue to learn everything experimentally, instead of profiting by what is already known elsewhere. We are dealing with a new and momentous question, in the pregnant years while institutions are forming, and what we do will affect not only the present but future generations.

Our aim should be not simply to reclaim the largest area of land and provide homes for the largest number of people, but to create for this new industry the best possible social and industrial conditions; and this requires that we not only understand the existing situation, but avail ourselves of the best experience of the time in the solution of its problems. A careful study should be made, both by the Nation and the States, of the irrigation laws and conditions here and abroad. Ultimately it will probably be necessary for the Nation to co-operate with the several arid States in proportion as these States by their legislation and administration show themselves fit to receive it.

In Hawaii our aim must be to develop the Territory on the traditional American lines. We do not wish a region of large estates tilled by cheap labor; we wish a healthy American community of men who themselves till the farms they own. All our legislation for the islands should be shaped with this end in view; the well-being of the average home-maker must afford the true test of the healthy development of the islands. The land policy should as nearly as possible be modeled on our homestead system.

It is a pleasure to say that it is hardly more necessary to report as to Puerto Rico than as to any State or Territory within our continental limits. The island is thriving as never before, and it is being administered efficiently and honestly. Its people are now enjoying liberty and order under the protection of the United States, and upon this fact we congratulate them and ourselves. Their material welfare must be as carefully and jealously considered as the welfare of any other portion of our country. We have given them the great gift of free access for their products to the markets of the United States. I ask the attention of the Congress to the need of legislation concerning the public lands of Puerto Rico.

In Cuba such progress has been made toward putting the independent government of the island upon a firm footing that before the present session of the Congress closes this will be an accomplished fact. Cuba will then start as her own mistress; and to the beautiful Queen of the Antilles, as she unfolds this new page of her destiny, we extend our heartiest greetings and good wishes. Elsewhere I have discussed the question of reciprocity. In the case of Cuba, however, there are weighty reasons of morality and of national interest why the policy should be held to have a peculiar

application, and I most earnestly ask your attention to the wisdom, indeed to the vital need, of providing for a substantial reduction in the tariff duties on Cuban imports into the United States. Cuba has in her constitution affirmed what we desired, that she should stand, in international matters, in closer and more friendly relations with us than with any other power; and we are bound by every consideration of honor and expediency to pass commercial measures in the interest of her material well-being.

In the Philippines our problem is larger. They are very rich tropical islands, inhabited by many varying tribes, representing widely different stages of progress toward civilization. Our earnest effort is to help these people upward along the stony and difficult path that leads to self-government. We hope to make our administration of the islands honorable to our Nation by making it of the highest benefit to the Filipinos themselves; and as an earnest of what we intend to do, we point to what we have done. Already a greater measure of material prosperity and of governmental honesty and efficiency has been attained in the Philippines than ever before in their history.

It is no light task for a nation to achieve the temperamental qualities without which the institutions of free government are but an empty mockery. Our people are now successfully governing themselves, because for more than a thousand years they have been slowly fitting themselves, sometimes consciously, sometimes unconsciously, toward this end. What has taken us thirty generations to achieve, we cannot expect to see another race accomplish out of hand, especially when large portions of that race start very far behind the point which our ancestors had reached even thirty generations ago. In dealing with the Philippine people we must show both patience and strength, forbearance and steadfast resolution. Our aim is high. We do not desire to do for the islanders merely what has elsewhere been done for tropic peoples by even the best foreign governments. We hope to do for them what has never before been done for any people of the tropics—to make them fit for self-government after the fashion of the really free nations.

History may safely be challenged to show a single instance in which a masterful race such as ours, having been forced by the exigencies of war to take possession of an alien land, has behaved to its inhabitants with the

disinterested zeal for their progress that our people have shown in the Philippines. To leave the islands at this time would mean that they would fall into a welter of murderous anarchy. Such desertion of duty on our part would be a crime against humanity. The character of Governor Taft and of his associates and subordinates is a proof, if such be needed, of the sincerity of our effort to give the islanders a constantly increasing measure of self-government, exactly as fast as they show themselves fit to exercise it. Since the civil government was established not an appointment has been made in the islands with any reference to considerations of political influence, or to aught else save the fitness of the man and the needs of the service.

In our anxiety for the welfare and progress of the Philippines, it may be that here and there we have gone too rapidly in giving them local self-government. It is on this side that our error, if any, has been committed. No competent observer, sincerely desirous of finding out the facts and influenced only by a desire for the welfare of the natives, can assert that we have not gone far enough. We have gone to the very verge of safety in hastening the process. To have taken a single step farther or faster in advance would have been folly and weakness, and might well have been crime. We are extremely anxious that the natives shall show the power of governing themselves. We are anxious, first for their sakes, and next, because it relieves us of a great burden. There need not be the slightest fear of our not continuing to give them all the liberty for which they are fit.

The only fear is lest in our overanxiety we give them a degree of independence for which they are unfit, thereby inviting reaction and disaster. As fast as there is any reasonable hope that in a given district the people can govern themselves, self-government has been given in that district. There is not a locality fitted for self-government which has not received it. But it may well be that in certain cases it will have to be withdrawn because the inhabitants show themselves unfit to exercise it; such instances have already occurred. In other words, there is not the slightest chance of our failing to show a sufficiently humanitarian spirit. The danger comes in the opposite direction.

There are still troubles ahead in the islands. The insurrection has become an affair of local banditti and marauders, who deserve no higher regard than the brigands of portions of the Old World. Encouragement, direct or

indirect, to these insurrectors stands on the same footing as encouragement to hostile Indians in the days when we still had Indian wars. Exactly as our aim is to give to the Indian who remains peaceful the fullest and amplest consideration, but to have it understood that we will show no weakness if he goes on the warpath, so we must make it evident, unless we are false to our own traditions and to the demands of civilization and humanity, that while we will do everything in our power for the Filipino who is peaceful, we will take the sternest measures with the Filipino who follows the path of the insurrecto and the ladrone.

The heartiest praise is due to large numbers of the natives of the islands for their steadfast loyalty. The Macabebes have been conspicuous for their courage and devotion to the flag. I recommend that the Secretary of War be empowered to take some systematic action in the way of aiding those of these men who are crippled in the service and the families of those who are killed.

The time has come when there should be additional legislation for the Philippines. Nothing better can be done for the islands than to introduce industrial enterprises. Nothing would benefit them so much as throwing them open to industrial development. The connection between idleness and mischief is proverbial, and the opportunity to do remunerative work is one of the surest preventatives of war. Of course no business man will go into the Philippines unless it is to his interest to do so; and it is immensely to the interest of the islands that he should go in. It is therefore necessary that the Congress should pass laws by which the resources of the islands can be developed; so that franchises (for limited terms of years) can be granted to companies doing business in them, and every encouragement be given to the incoming of business men of every kind.

Not to permit this is to do a wrong to the Philippines. The franchises must be granted and the business permitted only under regulations which will guarantee the islands against any kind of improper exploitation. But the vast natural wealth of the islands must be developed, and the capital willing to develop it must be given the opportunity. The field must be thrown open to individual enterprise, which has been the real factor in the development of every region over which our flag has flown. It is urgently necessary to enact suitable laws dealing with general transportation, mining, banking,

currency, homesteads, and the use and ownership of the lands and timber. These laws will give free play to industrial enterprise; and the commercial development which will surely follow will accord to the people of the islands the best proofs of the sincerity of our desire to aid them.

I call your attention most earnestly to the crying need of a cable to Hawaii and the Philippines, to be continued from the Philippines to points in Asia. We should not defer a day longer than necessary the construction of such a cable. It is demanded not merely for commercial but for political and military considerations.

Either the Congress should immediately provide for the construction of a Government cable, or else an arrangement should be made by which like advantages to those accruing from a Government cable may be secured to the Government by contract with a private cable company.

No single great material work which remains to be undertaken on this continent is of such consequence to the American people as the building of a canal across the Isthmus connecting North and South America. Its importance to the Nation is by no means limited merely to its material effects upon our business prosperity; and yet with view to these effects alone it would be to the last degree important for us immediately to begin it. While its beneficial effects would perhaps be most marked upon the Pacific Coast and the Gulf and South Atlantic States, it would also greatly benefit other sections. It is emphatically a work which it is for the interest of the entire country to begin and complete as soon as possible; it is one of those great works which only a great nation can undertake with prospects of success, and which when done are not only permanent assets in the nation's material interests, but standing monuments to its constructive ability.

I am glad to be able to announce to you that our negotiations on this subject with Great Britain, conducted on both sides in a spirit of friendliness and mutual good will and respect, have resulted in my being able to lay before the Senate a treaty which if ratified will enable us to begin preparations for an Isthmian canal at any time, and which guarantees to this Nation every right that it has ever asked in connection with the canal. In this treaty, the old Clayton-Bulwer treaty, so long recognized as inadequate to supply the base for the construction and maintenance of a necessarily

American ship canal, is abrogated. It specifically provides that the United States alone shall do the work of building and assume the responsibility of safeguarding the canal and shall regulate its neutral use by all nations on terms of equality without the guaranty or interference of any outside nation from any quarter. The signed treaty will at once be laid before the Senate, and if approved the Congress can then proceed to give effect to the advantages it secures us by providing for the building of the canal.

The true end of every great and free people should be self-respecting peace; and this Nation most earnestly desires sincere and cordial friendship with all others. Over the entire world, of recent years, wars between the great civilized powers have become less and less frequent. Wars with barbarous or semi-barbarous peoples come in an entirely different category, being merely a most regrettable but necessary international police duty which must be performed for the sake of the welfare of mankind. Peace can only be kept with certainty where both sides wish to keep it; but more and more the civilized peoples are realizing the wicked folly of war and are attaining that condition of just and intelligent regard for the rights of others which will in the end, as we hope and believe, make world-wide peace possible. The peace conference at The Hague gave definite expression to this hope and belief and marked a stride toward their attainment.

This same peace conference acquiesced in our statement of the Monroe Doctrine as compatible with the purposes and aims of the conference.

The Monroe Doctrine should be the cardinal feature of the foreign policy of all the nations of the two Americas, as it is of the United States. Just seventy-eight years have passed since President Monroe in his Annual Message announced that "The American continents are henceforth not to be considered as subjects for future colonization by any European power." In other words, the Monroe Doctrine is a declaration that there must be no territorial aggrandizement by any non-American power at the expense of any American power on American soil. It is in no wise intended as hostile to any nation in the Old World. Still less is it intended to give cover to any aggression by one New World power at the expense of any other. It is simply a step, and a long step, toward assuring the universal peace of the world by securing the possibility of permanent peace on this hemisphere.

During the past century other influences have established the permanence and independence of the smaller states of Europe. Through the Monroe Doctrine we hope to be able to safeguard like independence and secure like permanence for the lesser among the New World nations.

This doctrine has nothing to do with the commercial relations of any American power, save that it in truth allows each of them to form such as it desires. In other words, it is really a guaranty of the commercial independence of the Americas. We do not ask under this doctrine for any exclusive commercial dealings with any other American state. We do not guarantee any state against punishment if it misconducts itself, provided that punishment does not take the form of the acquisition of territory by any non-American power.

Our attitude in Cuba is a sufficient guaranty of our own good faith. We have not the slightest desire to secure any territory at the expense of any of our neighbors. We wish to work with them hand in hand, so that all of us may be uplifted together, and we rejoice over the good fortune of any of them, we gladly hail their material prosperity and political stability, and are concerned and alarmed if any of them fall into industrial or political chaos. We do not wish to see any Old World military power grow up on this continent, or to be compelled to become a military power ourselves. The peoples of the Americas can prosper best if left to work out their own salvation in their own way.

The work of upbuilding the Navy must be steadily continued. No one point of our policy, foreign or domestic, is more important than this to the honor and material welfare, and above all to the peace, of our nation in the future. Whether we desire it or not, we must henceforth recognize that we have international duties no less than international rights. Even if our flag were hauled down in the Philippines and Puerto Rico, even if we decided not to build the Isthmian Canal, we should need a thoroughly trained Navy of adequate size, or else be prepared definitely and for all time to abandon the idea that our nation is among those whose sons go down to the sea in ships. Unless our commerce is always to be carried in foreign bottoms, we must have war craft to protect it.

Inasmuch, however, as the American people have no thought of abandoning the path upon which they have entered, and especially in view of the fact that the building of the Isthmian Canal is fast becoming one of the matters which the whole people are united in demanding, it is imperative that our Navy should be put and kept in the highest state of efficiency, and should be made to answer to our growing needs. So far from being in any way a provocation to war, an adequate and highly trained navy is the best guaranty against war, the cheapest and most effective peace insurance. The cost of building and maintaining such a navy represents the very lightest premium for insuring peace which this nation can possibly pay.

Probably no other great nation in the world is so anxious for peace as we are. There is not a single civilized power which has anything whatever to fear from aggressiveness on our part. All we want is peace; and toward this end we wish to be able to secure the same respect for our rights from others which we are eager and anxious to extend to their rights in return, to insure fair treatment to us commercially, and to guarantee the safety of the American people.

Our people intend to abide by the Monroe Doctrine and to insist upon it as the one sure means of securing the peace of the Western Hemisphere. The Navy offers us the only means of making our insistence upon the Monroe Doctrine anything but a subject of derision to whatever nation chooses to disregard it. We desire the peace which comes as of right to the just man armed; not the peace granted on terms of ignominy to the craven and the weakling.

It is not possible to improvise a navy after war breaks out. The ships must be built and the men trained long in advance. Some auxiliary vessels can be turned into makeshifts which will do in default of any better for the minor work, and a proportion of raw men can be mixed with the highly trained, their shortcomings being made good by the skill of their fellows; but the efficient fighting force of the Navy when pitted against an equal opponent will be found almost exclusively in the war ships that have been regularly built and in the officers and men who through years of faithful performance of sea duty have been trained to handle their formidable but complex and delicate weapons with the highest efficiency. In the late war with Spain the

ships that dealt the decisive blows at Manila and Santiago had been launched from two to fourteen years, and they were able to do as they did because the men in the conning towers, the gun turrets, and the engine-rooms had through long years of practice at sea learned how to do their duty.

Our present Navy was begun in 1882. At that period our Navy consisted of a collection of antiquated wooden ships, already almost as out of place against modern war vessels as the galleys of Alcibiades and Hamilcar—certainly as the ships of Tromp and Blake. Nor at that time did we have men fit to handle a modern man-of-war. Under the wise legislation of the Congress and the successful administration of a succession of patriotic Secretaries of the Navy, belonging to both political parties, the work of upbuilding the Navy went on, and ships equal to any in the world of their kind were continually added; and what was even more important, these ships were exercised at sea singly and in squadrons until the men aboard them were able to get the best possible service out of them. The result was seen in the short war with Spain, which was decided with such rapidity because of the infinitely greater preparedness of our Navy than of the Spanish Navy.

While awarding the fullest honor to the men who actually commanded and manned the ships which destroyed the Spanish sea forces in the Philippines and in Cuba, we must not forget that an equal meed of praise belongs to those without whom neither blow could have been struck. The Congressmen who voted years in advance the money to lay down the ships, to build the guns, to buy the armor-plate; the Department officials and the business men and wage-workers who furnished what the Congress had authorized; the Secretaries of the Navy who asked for and expended the appropriations; and finally the officers who, in fair weather and foul, on actual sea service, trained and disciplined the crews of the ships when there was no war in sight—all are entitled to a full share in the glory of Manila and Santiago, and the respect accorded by every true American to those who wrought such signal triumph for our country. It was forethought and preparation which secured us the overwhelming triumph of 1898. If we fail to show forethought and preparation now, there may come a time when disaster will befall us instead of triumph; and should this time come, the fault will rest primarily, not upon those whom the accident of events puts in

supreme command at the moment, but upon those who have failed to prepare in advance.

There should be no cessation in the work of completing our Navy. So far ingenuity has been wholly unable to devise a substitute for the great war craft whose hammering guns beat out the mastery of the high seas. It is unsafe and unwise not to provide this year for several additional battle ships and heavy armored cruisers, with auxiliary and lighter craft in proportion; for the exact numbers and character I refer you to the report of the Secretary of the Navy. But there is something we need even more than additional ships, and this is additional officers and men. To provide battle ships and cruisers and then lay them up, with the expectation of leaving them unmanned until they are needed in actual war, would be worse than folly; it would be a crime against the Nation.

To send any war ship against a competent enemy unless those aboard it have been trained by years of actual sea service, including incessant gunnery practice, would be to invite not merely disaster, but the bitterest shame and humiliation. Four thousand additional seamen and one thousand additional marines should be provided; and an increase in the officers should be provided by making a large addition to the classes at Annapolis. There is one small matter which should be mentioned in connection with Annapolis. The pretentious and unmeaning title of "naval cadet" should be abolished; the title of "midshipman," full of historic association, should be restored.

Even in time of peace a war ship should be used until it wears out, for only so can it be kept fit to respond to any emergency. The officers and men alike should be kept as much as possible on blue water, for it is there only they can learn their duties as they should be learned. The big vessels should be manoeuvred in squadrons containing not merely battle ships, but the necessary proportion of cruisers and scouts. The torpedo boats should be handled by the younger officers in such manner as will best fit the latter to take responsibility and meet the emergencies of actual warfare.

Every detail ashore which can be performed by a civilian should be so performed, the officer being kept for his special duty in the sea service. Above all, gunnery practice should be unceasing. It is important to have our

Navy of adequate size, but it is even more important that ship for ship it should equal in efficiency any navy in the world. This is possible only with highly drilled crews and officers, and this in turn imperatively demands continuous and progressive instruction in target practice, ship handling, squadron tactics, and general discipline. Our ships must be assembled in squadrons actively cruising away from harbors and never long at anchor. The resulting wear upon engines and hulls must be endured; a battle ship worn out in long training of officers and men is well paid for by the results, while, on the other hand, no matter in how excellent condition, it is useless if the crew be not expert.

We now have seventeen battle ships appropriated for, of which nine are completed and have been commissioned for actual service. The remaining eight will be ready in from two to four years, but it will take at least that time to recruit and train the men to fight them. It is of vast concern that we have trained crews ready for the vessels by the time they are commissioned. Good ships and good guns are simply good weapons, and the best weapons are useless save in the hands of men who know how to fight with them. The men must be trained and drilled under a thorough and well-planned system of progressive instruction, while the recruiting must be carried on with still greater vigor. Every effort must be made to exalt the main function of the officer—the command of men. The leading graduates of the Naval Academy should be assigned to the combatant branches, the line and marines.

Many of the essentials of success are already recognized by the General Board, which, as the central office of a growing staff, is moving steadily toward a proper war efficiency and a proper efficiency of the whole Navy, under the Secretary. This General Board, by fostering the creation of a general staff, is providing for the official and then the general recognition of our altered conditions as a Nation and of the true meaning of a great war fleet, which meaning is, first, the best men, and, second, the best ships.

The Naval Militia forces are State organizations, and are trained for coast service, and in event of war they will constitute the inner line of defense. They should receive hearty encouragement from the General Government.

But in addition we should at once provide for a National Naval Reserve, organized and trained under the direction of the Navy Department, and subject to the call of the Chief Executive whenever war becomes imminent. It should be a real auxiliary to the naval seagoing peace establishment, and offer material to be drawn on at once for manning our ships in time of war. It should be composed of graduates of the Naval Academy, graduates of the Naval Militia, officers and crews of coast-line steamers, longshore schooners, fishing vessels, and steam yachts, together with the coast population about such centers as life-saving stations and light-houses.

The American people must either build and maintain an adequate navy or else make up their minds definitely to accept a secondary position in international affairs, not merely in political, but in commercial, matters. It has been well said that there is no surer way of courting national disaster than to be "opulent, aggressive, and unarmed."

It is not necessary to increase our Army beyond its present size at this time. But it is necessary to keep it at the highest point of efficiency. The individual units who as officers and enlisted men compose this Army, are, we have good reason to believe, at least as efficient as those of any other army in the entire world. It is our duty to see that their training is of a kind to insure the highest possible expression of power to these units when acting in combination.

The conditions of modern war are such as to make an infinitely heavier demand than ever before upon the individual character and capacity of the officer and the enlisted man, and to make it far more difficult for men to act together with effect. At present the fighting must be done in extended order, which means that each man must act for himself and at the same time act in combination with others with whom he is no longer in the old-fashioned elbow-to-elbow touch. Under such conditions a few men of the highest excellence are worth more than many men without the special skill which is only found as the result of special training applied to men of exceptional physique and morale. But nowadays the most valuable fighting man and the most difficult to perfect is the rifleman who is also a skillful and daring rider.

The proportion of our cavalry regiments has wisely been increased. The American cavalryman, trained to manoeuvre and fight with equal facility on foot and on horseback, is the best type of soldier for general purposes now to be found in the world. The ideal cavalryman of the present day is a man who can fight on foot as effectively as the best infantryman, and who is in addition unsurpassed in the care and management of his horse and in his ability to fight on horseback.

A general staff should be created. As for the present staff and supply departments, they should be filled by details from the line, the men so detailed returning after a while to their line duties. It is very undesirable to have the senior grades of the Army composed of men who have come to fill the positions by the mere fact of seniority. A system should be adopted by which there shall be an elimination grade by grade of those who seem unfit to render the best service in the next grade. Justice to the veterans of the Civil War who are still in the Army would seem to require that in the matter of retirements they be given by law the same privileges accorded to their comrades in the Navy.

The process of elimination of the least fit should be conducted in a manner that would render it practically impossible to apply political or social pressure on behalf of any candidate, so that each man may be judged purely on his own merits. Pressure for the promotion of civil officials for political reasons is bad enough, but it is tenfold worse where applied on behalf of officers of the Army or Navy. Every promotion and every detail under the War Department must be made solely with regard to the good of the service and to the capacity and merit of the man himself. No pressure, political, social, or personal, of any kind, will be permitted to exercise the least effect in any question of promotion or detail; and if there is reason to believe that such pressure is exercised at the instigation of the officer concerned, it will be held to militate against him. In our Army we cannot afford to have rewards or duties distributed save on the simple ground that those who by their own merits are entitled to the rewards get them, and that those who are peculiarly fit to do the duties are chosen to perform them.

Every effort should be made to bring the Army to a constantly increasing state of efficiency. When on actual service no work save that directly in the line of such service should be required. The paper work in the Army, as in

the Navy, should be greatly reduced. What is needed is proved power of command and capacity to work well in the field. Constant care is necessary to prevent dry rot in the transportation and commissary departments.

Our Army is so small and so much scattered that it is very difficult to give the higher officers (as well as the lower officers and the enlisted men) a chance to practice manoeuvres in mass and on a comparatively large scale. In time of need no amount of individual excellence would avail against the paralysis which would follow inability to work as a coherent whole, under skillful and daring leadership. The Congress should provide means whereby it will be possible to have field exercises by at least a division of regulars, and if possible also a division of national guardsmen, once a year. These exercises might take the form of field manoeuvres; or, if on the Gulf Coast or the Pacific or Atlantic Seaboard, or in the region of the Great Lakes, the army corps when assembled could be marched from some inland point to some point on the water, there embarked, disembarked after a couple of days' journey at some other point, and again marched inland. Only by actual handling and providing for men in masses while they are marching, camping, embarking, and disembarking, will it be possible to train the higher officers to perform their duties well and smoothly.

A great debt is owing from the public to the men of the Army and Navy. They should be so treated as to enable them to reach the highest point of efficiency, so that they may be able to respond instantly to any demand made upon them to sustain the interests of the Nation and the honor of the flag. The individual American enlisted man is probably on the whole a more formidable fighting man than the regular of any other army. Every consideration should be shown him, and in return the highest standard of usefulness should be exacted from him. It is well worth while for the Congress to consider whether the pay of enlisted men upon second and subsequent enlistments should not be increased to correspond with the increased value of the veteran soldier.

Much good has already come from the act reorganizing the Army, passed early in the present year. The three prime reforms, all of them of literally inestimable value, are, first, the substitution of four-year details from the line for permanent appointments in the so-called staff divisions; second, the establishment of a corps of artillery with a chief at the head; third, the

establishment of a maximum and minimum limit for the Army. It would be difficult to overestimate the improvement in the efficiency of our Army which these three reforms are making, and have in part already effected.

The reorganization provided for by the act has been substantially accomplished. The improved conditions in the Philippines have enabled the War Department materially to reduce the military charge upon our revenue and to arrange the number of soldiers so as to bring this number much nearer to the minimum than to the maximum limit established by law. There is, however, need of supplementary legislation. Thorough military education must be provided, and in addition to the regulars the advantages of this education should be given to the officers of the National Guard and others in civil life who desire intelligently to fit themselves for possible military duty. The officers should be given the chance to perfect themselves by study in the higher branches of this art. At West Point the education should be of the kind most apt to turn out men who are good in actual field service; too much stress should not be laid on mathematics, nor should proficiency therein be held to establish the right of entry to a *corps d'élite*. The typical American officer of the best kind need not be a good mathematician; but he must be able to master himself, to control others, and to show boldness and fertility of resource in every emergency.

Action should be taken in reference to the militia and to the raising of volunteer forces. Our militia law is obsolete and worthless. The organization and armament of the National Guard of the several States, which are treated as militia in the appropriations by the Congress, should be made identical with those provided for the regular forces. The obligations and duties of the Guard in time of war should be carefully defined, and a system established by law under which the method of procedure of raising volunteer forces should be prescribed in advance. It is utterly impossible in the excitement and haste of impending war to do this satisfactorily if the arrangements have not been made long beforehand. Provision should be made for utilizing in the first volunteer organizations called out the training of those citizens who have already had experience under arms, and especially for the selection in advance of the officers of any force which may be raised; for careful selection of the kind necessary is impossible after the outbreak of war.

That the Army is not at all a mere instrument of destruction has been shown during the last three years. In the Philippines, Cuba, and Puerto Rico it has proved itself a great constructive force, a most potent implement for the upbuilding of a peaceful civilization.

No other citizens deserve so well of the Republic as the veterans, the survivors of those who saved the Union. They did the one deed which if left undone would have meant that all else in our history went for nothing. But for their steadfast prowess in the greatest crisis of our history, all our annals would be meaningless, and our great experiment in popular freedom and self-government a gloomy failure. Moreover, they not only left us a united Nation, but they left us also as a heritage the memory of the mighty deeds by which the Nation was kept united. We are now indeed one Nation, one in fact as well as in name; we are united in our devotion to the flag which is the symbol of national greatness and unity; and the very completeness of our union enables us all, in every part of the country, to glory in the valor shown alike by the sons of the North and the sons of the South in the times that tried men's souls.

The men who in the last three years have done so well in the East and the West Indies and on the mainland of Asia have shown that this remembrance is not lost. In any serious crisis the United States must rely for the great mass of its fighting men upon the volunteer soldiery who do not make a permanent profession of the military career; and whenever such a crisis arises the deathless memories of the Civil War will give to Americans the lift of lofty purpose which comes to those whose fathers have stood valiantly in the forefront of the battle.

The merit system of making appointments is in its essence as democratic and American as the common school system itself. It simply means that in clerical and other positions where the duties are entirely non-political, all applicants should have a fair field and no favor, each standing on his merits as he is able to show them by practical test. Written competitive examinations offer the only available means in many cases for applying this system. In other cases, as where laborers are employed, a system of registration undoubtedly can be widely extended. There are, of course, places where the written competitive examination cannot be applied, and others where it offers by no means an ideal solution, but where under

existing political conditions it is, though an imperfect means, yet the best present means of getting satisfactory results.

Wherever the conditions have permitted the application of the merit system in its fullest and widest sense, the gain to the Government has been immense. The navy-yards and postal service illustrate, probably better than any other branches of the Government, the great gain in economy, efficiency, and honesty due to the enforcement of this principle.

I recommend the passage of a law which will extend the classified service to the District of Columbia, or will at least enable the President thus to extend it. In my judgment all laws providing for the temporary employment of clerks should hereafter contain a provision that they be selected under the Civil Service Law.

It is important to have this system obtain at home, but it is even more important to have it applied rigidly in our insular possessions. Not an office should be filled in the Philippines or Puerto Rico with any regard to the man's partisan affiliations or services, with any regard to the political, social, or personal influence which he may have at his command; in short, heed should be paid to absolutely nothing save the man's own character and capacity and the needs of the service.

The administration of these islands should be as wholly free from the suspicion of partisan politics as the administration of the Army and Navy. All that we ask from the public servant in the Philippines or Puerto Rico is that he reflect honor on his country by the way in which he makes that country's rule a benefit to the peoples who have come under it. This is all that we should ask, and we cannot afford to be content with less.

The merit system is simply one method of securing honest and efficient administration of the Government; and in the long run the sole justification of any type of government lies in its proving itself both honest and efficient.

The consular service is now organized under the provisions of a law passed in 1856, which is entirely inadequate to existing conditions. The interest shown by so many commercial bodies throughout the country in the reorganization of the service is heartily commended to your attention. Several bills providing for a new consular service have in recent years been

submitted to the Congress. They are based upon the just principle that appointments to the service should be made only after a practical test of the applicant's fitness, that promotions should be governed by trustworthiness, adaptability, and zeal in the performance of duty, and that the tenure of office should be unaffected by partisan considerations.

The guardianship and fostering of our rapidly expanding foreign commerce, the protection of American citizens resorting to foreign countries in lawful pursuit of their affairs, and the maintenance of the dignity of the nation abroad, combine to make it essential that our consuls should be men of character, knowledge and enterprise. It is true that the service is now, in the main, efficient, but a standard of excellence cannot be permanently maintained until the principles set forth in the bills heretofore submitted to the Congress on this subject are enacted into law.

In my judgment the time has arrived when we should definitely make up our minds to recognize the Indian as an individual and not as a member of a tribe. The General Allotment Act is a mighty pulverizing engine to break up the tribal mass. It acts directly upon the family and the individual. Under its provisions some sixty thousand Indians have already become citizens of the United States. We should now break up the tribal funds, doing for them what allotment does for the tribal lands; that is, they should be divided into individual holdings. There will be a transition period during which the funds will in many cases have to be held in trust. This is the case also with the lands. A stop should be put upon the indiscriminate permission to Indians to lease their allotments. The effort should be steadily to make the Indian work like any other man on his own ground. The marriage laws of the Indians should be made the same as those of the whites.

In the schools the education should be elementary and largely industrial. The need of higher education among the Indians is very, very limited. On the reservations care should be taken to try to suit the teaching to the needs of the particular Indian. There is no use in attempting to induce agriculture in a country suited only for cattle raising, where the Indian should be made a stock grower. The ration system, which is merely the corral and the reservation system, is highly detrimental to the Indians. It promotes beggary, perpetuates pauperism, and stifles industry. It is an effectual barrier to progress. It must continue to a greater or less degree as long as tribes are

herded on reservations and have everything in common. The Indian should be treated as an individual—like the white man. During the change of treatment inevitable hardships will occur; every effort should be made to minimize these hardships; but we should not because of them hesitate to make the change. There should be a continuous reduction in the number of agencies.

In dealing with the aboriginal races few things are more important than to preserve them from the terrible physical and moral degradation resulting from the liquor traffic. We are doing all we can to save our own Indian tribes from this evil. Wherever by international agreement this same end can be attained as regards races where we do not possess exclusive control, every effort should be made to bring it about.

I bespeak the most cordial support from the Congress and the people for the St. Louis Exposition to commemorate the One Hundredth Anniversary of the Louisiana Purchase. This purchase was the greatest instance of expansion in our history. It definitely decided that we were to become a great continental republic, by far the foremost power in the Western Hemisphere. It is one of three or four great landmarks in our history—the great turning points in our development. It is eminently fitting that all our people should join with heartiest good will in commemorating it, and the citizens of St. Louis, of Missouri, of all the adjacent region, are entitled to every aid in making the celebration a noteworthy event in our annals. We earnestly hope that foreign nations will appreciate the deep interest our country takes in this Exposition, and our view of its importance from every standpoint, and that they will participate in securing its success. The National Government should be represented by a full and complete set of exhibits.

The people of Charleston, with great energy and civic spirit, are carrying on an Exposition which will continue throughout most of the present session of the Congress. I heartily commend this Exposition to the good will of the people. It deserves all the encouragement that can be given it. The managers of the Charleston Exposition have requested the Cabinet officers to place thereat the Government exhibits which have been at Buffalo, promising to pay the necessary expenses. I have taken the responsibility of directing that this be done, for I feel that it is due to

Charleston to help her in her praiseworthy effort. In my opinion the management should not be required to pay all these expenses. I earnestly recommend that the Congress appropriate at once the small sum necessary for this purpose.

The Pan-American Exposition at Buffalo has just closed. Both from the industrial and the artistic standpoint this Exposition has been in a high degree creditable and useful, not merely to Buffalo but to the United States. The terrible tragedy of the President's assassination interfered materially with its being a financial success. The Exposition was peculiarly in harmony with the trend of our public policy, because it represented an effort to bring into closer touch all the peoples of the Western Hemisphere, and give them an increasing sense of unity. Such an effort was a genuine service to the entire American public.

The advancement of the highest interests of national science and learning and the custody of objects of art and of the valuable results of scientific expeditions conducted by the United States have been committed to the Smithsonian Institution. In furtherance of its declared purpose—for the "increase and diffusion of knowledge among men"—the Congress has from time to time given it other important functions. Such trusts have been executed by the Institution with notable fidelity. There should be no halt in the work of the Institution, in accordance with the plans which its Secretary has presented, for the preservation of the vanishing races of great North American animals in the National Zoological Park. The urgent needs of the National Museum are recommended to the favorable consideration of the Congress.

Perhaps the most characteristic educational movement of the past fifty years is that which has created the modern public library and developed it into broad and active service. There are now over five thousand public libraries in the United States, the product of this period. In addition to accumulating material, they are also striving by organization, by improvement in method, and by co-operation, to give greater efficiency to the material they hold, to make it more widely useful, and by avoidance of unnecessary duplication in process to reduce the cost of its administration.

In these efforts they naturally look for assistance to the Federal library, which, though still the Library of Congress, and so entitled, is the one national library of the United States. Already the largest single collection of books on the Western Hemisphere, and certain to increase more rapidly than any other through purchase, exchange, and the operation of the copyright law, this library has a unique opportunity to render to the libraries of this country—to American scholarship—service of the highest importance. It is housed in a building which is the largest and most magnificent yet erected for library uses. Resources are now being provided which will develop the collection properly, equip it with the apparatus and service necessary to its effective use, render its bibliographic work widely available, and enable it to become, not merely a center of research, but the chief factor in great co-operative efforts for the diffusion of knowledge and the advancement of learning.

For the sake of good administration, sound economy, and the advancement of science, the Census Office as now constituted should be made a permanent Government bureau. This would insure better, cheaper, and more satisfactory work, in the interest not only of our business but of statistic, economic, and social science.

The remarkable growth of the postal service is shown in the fact that its revenues have doubled and its expenditures have nearly doubled within twelve years. Its progressive development compels constantly increasing outlay, but in this period of business energy and prosperity its receipts grow so much faster than its expenses that the annual deficit has been steadily reduced from \$11,411,779 in 1897 to \$3,923,727 in 1901. Among recent postal advances the success of rural free delivery wherever established has been so marked, and actual experience has made its benefits so plain, that the demand for its extension is general and urgent.

It is just that the great agricultural population should share in the improvement of the service. The number of rural routes now in operation is 6,009, practically all established within three years, and there are 6,000 applications awaiting action. It is expected that the number in operation at the close of the current fiscal year will reach 8,600. The mail will then be daily carried to the doors of 5,700,000 of our people who have heretofore

been dependent upon distant offices, and one-third of all that portion of the country which is adapted to it will be covered by this kind of service.

The full measure of postal progress which might be realized has long been hampered and obstructed by the heavy burden imposed on the Government through the intrenched and well-understood abuses which have grown up in connection with second-class mail matter. The extent of this burden appears when it is stated that while the second-class matter makes nearly three-fifths of the weight of all the mail, it paid for the last fiscal year only \$4,294,445 of the aggregate postal revenue of \$111,631,193. If the pound rate of postage, which produces the large loss thus entailed, and which was fixed by the Congress with the purpose of encouraging the dissemination of public information, were limited to the legitimate newspapers and periodicals actually contemplated by the law, no just exception could be taken. That expense would be the recognized and accepted cost of a liberal public policy deliberately adopted for a justifiable end. But much of the matter which enjoys the privileged rate is wholly outside of the intent of the law, and has secured admission only through an evasion of its requirements or through lax construction. The proportion of such wrongly included matter is estimated by postal experts to be one-half of the whole volume of second-class mail. If it be only one-third or one-quarter, the magnitude of the burden is apparent. The Post-Office Department has now undertaken to remove the abuses so far as is possible by a stricter application of the law; and it should be sustained in its effort.

Owing to the rapid growth of our power and our interests on the Pacific, whatever happens in China must be of the keenest national concern to us.

The general terms of the settlement of the questions growing out of the antforeign uprisings in China of 1900, having been formulated in a joint note addressed to China by the representatives of the injured powers in December last, were promptly accepted by the Chinese Government. After protracted conferences the plenipotentiaries of the several powers were able to sign a final protocol with the Chinese plenipotentiaries on the 7th of last September, setting forth the measures taken by China in compliance with the demands of the joint note, and expressing their satisfaction therewith. It will be laid before the Congress, with a report of the plenipotentiary on behalf of the United States, Mr. William Woodville Rockhill, to whom high

praise is due for the tact, good judgment, and energy he has displayed in performing an exceptionally difficult and delicate task.

The agreement reached disposes in a manner satisfactory to the powers of the various grounds of complaint, and will contribute materially to better future relations between China and the powers. Reparation has been made by China for the murder of foreigners during the uprising and punishment has been inflicted on the officials, however high in rank, recognized as responsible for or having participated in the outbreak. Official examinations have been forbidden for a period of five years in all cities in which foreigners have been murdered or cruelly treated, and edicts have been issued making all officials directly responsible for the future safety of foreigners and for the suppression of violence against them.

Provisions have been made for insuring the future safety of the foreign representatives in Peking by setting aside for their exclusive use a quarter of the city which the powers can make defensible and in which they can if necessary maintain permanent military guards; by dismantling the military works between the capital and the sea; and by allowing the temporary maintenance of foreign military posts along this line. An edict has been issued by the Emperor of China prohibiting for two years the importation of arms and ammunition into China. China has agreed to pay adequate indemnities to the states, societies, and individuals for the losses sustained by them and for the expenses of the military expeditions sent by the various powers to protect life and restore order.

Under the provisions of the joint note of December, 1900, China has agreed to revise the treaties of commerce and navigation and to take such other steps for the purpose of facilitating foreign trade as the foreign powers may decide to be needed.

The Chinese Government has agreed to participate financially in the work of bettering the water approaches to Shanghai and to Tientsin, the centers of foreign trade in central and northern China, and an international conservancy board, in which the Chinese Government is largely represented, has been provided for the improvement of the Shanghai River and the control of its navigation. In the same line of commercial advantages a revision of the present tariff on imports has been assented to for the

purpose of substituting specific for *ad valorem* duties, and an expert has been sent abroad on the part of the United States to assist in this work. A list of articles to remain free of duty, including flour, cereals, and rice, gold and silver coin and bullion, has also been agreed upon in the settlement.

During these troubles our Government has unswervingly advocated moderation, and has materially aided in bringing about an adjustment which tends to enhance the welfare of China and to lead to a more beneficial intercourse between the Empire and the modern world; while in the critical period of revolt and massacre we did our full share in safeguarding life and property, restoring order, and vindicating the national interest and honor. It behooves us to continue in these paths, doing what lies in our power to foster feelings of good will, and leaving no effort untried to work out the great policy of full and fair intercourse between China and the nations, on a footing of equal rights and advantages to all. We advocate the "open door" with all that it implies; not merely the procurement of enlarged commercial opportunities on the coasts, but access to the interior by the waterways with which China has been so extraordinarily favored. Only by bringing the people of China into peaceful and friendly community of trade with all the peoples of the earth can the work now auspiciously begun be carried to fruition. In the attainment of this purpose we necessarily claim parity of treatment, under the conventions, throughout the Empire for our trade and our citizens with those of all other powers.

We view with lively interest and keen hopes of beneficial results the proceedings of the Pan-American Congress, convoked at the invitation of Mexico, and now sitting at the Mexican capital. The delegates of the United States are under the most liberal instructions to co-operate with their colleagues in all matters promising advantage to the great family of American commonwealths, as well in their relations among themselves as in their domestic advancement and in their intercourse with the world at large.

My predecessor communicated to the Congress the fact that the Weil and La Abra awards against Mexico have been adjudged by the highest courts of our country to have been obtained through fraud and perjury on the part of the claimants, and that in accordance with the acts of the Congress the money remaining in the hands of the Secretary of State on these awards has

been returned to Mexico. A considerable portion of the money received from Mexico on these awards had been paid by this Government to the claimants before the decision of the courts was rendered. My judgment is that the Congress should return to Mexico an amount equal to the sums thus already paid to the claimants.

The death of Queen Victoria caused the people of the United States deep and heartfelt sorrow, to which the Government gave full expression. When President McKinley died, our Nation in turn received from every quarter of the British Empire expressions of grief and sympathy no less sincere. The death of the Empress Dowager Frederick of Germany also aroused the genuine sympathy of the American people; and this sympathy was cordially reciprocated by Germany when the President was assassinated. Indeed, from every quarter of the civilized world we received, at the time of the President's death, assurances of such grief and regard as to touch the hearts of our people. In the midst of our affliction we reverently thank the Almighty that we are at peace with the nations of mankind; and we firmly intend that our policy shall be such as to continue unbroken these international relations of mutual respect and good will.

THEODORE ROOSEVELT.

WHITE HOUSE, *December 16, 1901.*

To the Senate and House of Representatives:

I transmit herewith a report from the Secretary of State, with accompanying papers, showing that a civil government for Puerto Rico has been organized in accordance with the provisions of the act of Congress approved April 12, 1900, entitled "An act to provide revenues and a civil Government for Puerto Rico, and for other purposes," and that the legislative assembly of Puerto Rico has enacted and put into operation a system of local taxation to meet the necessities of the government of Puerto Rico.

THEODORE ROOSEVELT.

WHITE HOUSE, *March 11, 1902.*

To the Senate of the United States:

I return without approval Senate bill, No. 1258 entitled "An act to remove the charge of desertion from the naval record of John Glass."

There can be no graver crime than the crime of desertion from the Army or Navy, especially during war; it is then high treason to the nation, and is justly punishable by death. No man should be relieved from such a crime, especially when nearly forty years have passed since it occurred, save on the clearest possible proof of his real innocence. In this case the statement made by the affiant before the committee does not in all points agree with his statement made to the Secretary of the Navy. In any event it is incomprehensible to me that he should not have made effective effort to get back into the Navy.

He had served but little more than a month when he deserted, and the war lasted for over a year afterwards, yet he made no effort whatever to get back into the war. Under such circumstances it seems to me that to remove the charge of desertion from the Navy and give him an honorable discharge would be to falsify the records and do an injustice to his gallant and worthy comrades who fought the war to a finish. The names of the veterans who fought in the civil war make the honor list of the Republic, and I am not willing to put upon it the name of a man unworthy of the high position.

THEODORE ROOSEVELT.

WHITE HOUSE, *Washington, May 12, 1902.*

To the Senate and House of Representatives:

One of the greatest calamities in history has fallen upon our neighboring island of Martinique. The consul of the United States at Guadeloupe has telegraphed from Fort de France, under date of yesterday, that the disaster is complete; that the city of St. Pierre has ceased to exist; and that the American consul and his family have perished. He is informed that 30,000 people have lost their lives and that 50,000 are homeless and hungry; that there is urgent need of all kinds of provisions, and that the visit of vessels for the work of supply and rescue is imperatively required.

The Government of France, while expressing their thanks for the marks of sympathy which have reached them from America, inform us that Fort de France and the entire island of Martinique are still threatened. They therefore request that, for the purpose of rescuing the people who are in such deadly peril and threatened with starvation, the Government of the United States may send, as soon as possible, the means of transporting them from the stricken island. The island of St. Vincent and, perhaps, others in that region are also seriously menaced by the calamity which has taken so appalling a form in Martinique.

I have directed the departments of the Treasury, of War, and of the Navy to take such measures for the relief of these stricken people as lies within the Executive discretion, and I earnestly commend this case of unexampled disaster to the generous consideration of the Congress. For this purpose I recommend that an appropriation of \$500,000 be made, to be immediately available.

THEODORE ROOSEVELT.

WHITE HOUSE, *June 13, 1902.*

To the Senate and House of Representatives:

I deem it important before the adjournment of the present session of Congress to call attention to the following expressions in the message which in the discharge of the duty imposed upon me by the Constitution I sent to Congress on the first Tuesday of December last:

Elsewhere I have discussed the question of reciprocity. In the case of Cuba, however, there are weighty reasons of morality and of national interest why the policy should be held to have a peculiar application, and I most earnestly ask your attention to the wisdom, indeed to the vital need, of providing for a substantial reduction in the tariff duties on Cuban imports into the United States. Cuba has in her Constitution affirmed what we desired, that she should stand, in international matters, in closer and more friendly relations with us than with any other power; and we are bound by every consideration of honor and expediency to pass commercial measures in the interest of her material well being.

This recommendation was merely giving practical effect to President McKinley's words, when, in his messages of December 5, 1898, and December 5, 1899, he wrote:

It is important that our relations with this people (of Cuba) shall be of the most friendly character and our commercial relations close and reciprocal. * * * We have accepted a trust, the fulfillment of which calls for the sternest integrity of purpose and the exercise of the highest wisdom. The new Cuba yet to arise from the ashes of the past must needs be bound to us by ties of singular intimacy and strength if its enduring welfare is to be assured. * * * The greatest blessing which can come to Cuba is the restoration of her agricultural and industrial prosperity.

Yesterday, June 12, I received, by cable from the American minister in Cuba, a most earnest appeal from President Palma for "legislative relief before it is too late and (his) country financially ruined."

The granting of reciprocity with Cuba is a proposition which stands entirely alone. The reasons for it far outweigh those for granting reciprocity with any other nation, and are entirely consistent with preserving intact the protective system under which this country has thriven so marvelously. The present tariff law was designed to promote the adoption of such a reciprocity treaty, and expressly provided for a reduction not to exceed 20 per cent upon goods coming from a particular country, leaving the tariff rates on the same articles unchanged as regards all other countries. Objection has been made to the granting of the reduction on the ground that the substantial benefit would not go to the agricultural producer of sugar, but would inure to the American sugar refiners. In my judgment provision can and should be made which will guarantee us against this possibility, without having recourse to a measure of doubtful policy, such as a bounty in the form of a rebate.

The question as to which if any of the different schedules of the tariff ought most properly to be revised does not enter into this matter in any way or shape. We are concerned with getting a friendly reciprocal arrangement

with Cuba. This arrangement applies to all the articles that Cuba grows or produces. It is not in our power to determine what these articles shall be, and any discussion of the tariff as it affects special schedules or countries other than Cuba is wholly aside from the subject matter to which I call your attention.

Some of our citizens oppose the lowering of the tariff on Cuban products just as three years ago they opposed the admission of the Hawaiian Islands lest free trade with them might ruin certain of our interests here. In the actual event their fears proved baseless as regards Hawaii, and their apprehensions as to the damage to any industry of our own because of the proposed measure of reciprocity with Cuba seem to me equally baseless. In my judgment no American industry will be hurt, and many American industries will be benefited by the proposed action. It is to our advantage as a nation that the growing Cuban market should be controlled by American producers.

The events following the war with Spain, and the prospective building of the Isthmian Canal, render it certain that we must take in the future a far greater interest than hitherto in what happens throughout the West Indies, Central America, and the adjacent coasts and waters. We expect Cuba to treat us on an exceptional footing politically, and we should put her in the same exceptional position economically. The proposed action is in line with the course we have pursued as regards all the islands with which we have been brought into relations of varying intimacy by the Spanish war. Puerto Rico and Hawaii have been included within our tariff lines, to their great benefit as well as ours, and without any of the feared detriment to our own industries. The Philippines, which stand in a different relation, have been granted substantial tariff concessions.

Cuba is an independent republic, but a republic which has assumed certain special obligations as regards her international position in compliance with our request. I ask for her certain special economic concessions in return; these economic concessions to benefit us as well as her. There are few brighter pages in American history than the page which tells of our dealings with Cuba during the past four years. On her behalf we waged a war of which the mainspring was generous indignation against oppression; and we have kept faith absolutely. It is earnestly to be hoped

that we will complete in the same spirit the record so well begun, and show in our dealings with Cuba that steady continuity of policy which it is essential for our nation to establish in foreign affairs if we desire to play well our part as a world power.

We are a wealthy and powerful nation; Cuba is a young republic, still weak, who owes to us her birth, whose whole future, whose very life, must depend on our attitude toward her. I ask that we help her as she struggles upward along the painful and difficult road of self-governing independence. I ask this aid for her, because she is weak, because she needs it, because we have already aided her. I ask that open-handed help, of a kind which a self-respecting people can accept, be given to Cuba, for the very reason that we have given her such help in the past. Our soldiers fought to give her freedom; and for three years our representatives, civil and military, have toiled unceasingly, facing disease of a peculiarly sinister and fatal type, with patient and uncomplaining fortitude, to teach her how to use aright her new freedom. Never in history has any alien country been thus administered, with such high integrity of purpose, such wise judgment, and such single-minded devotion to the country's interests. Now, I ask that the Cubans be given all possible chance to use to the best advantage the freedom of which Americans have such right to be proud, and for which so many American lives have been sacrificed.

THEODORE ROOSEVELT.

PROCLAMATIONS.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

To the People of the United States:

A terrible bereavement has befallen our people. The President of the United States has been struck down; a crime not only against the Chief Magistrate, but against every law-abiding and liberty-loving citizen.

President McKinley crowned a life of largest love for his fellow men, of earnest endeavor for their welfare, by a death of Christian fortitude; and both the way in which he lived his life and the way in which, in the supreme hour of trial, he met his death will remain forever a precious heritage of our people.

It is meet that we as a nation express our abiding love and reverence for his life, our deep sorrow for his untimely death.

Now, therefore, I, Theodore Roosevelt, President of the United States of America, do appoint Thursday next, September 19, the day in which the body of the dead President will be laid in its last earthly resting place, as a day of mourning and prayer throughout the United States. I earnestly recommend all the people to assemble on that day in their respective places of divine worship, there to bow down in submission to the will of Almighty God, and to pay out of full hearts the homage of love and reverence to the memory of the great and good President, whose death has so sorely smitten the nation.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, the fourteenth day of September, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

The season is nigh when, according to the time-hallowed custom of our people, the President appoints a day as the especial occasion for praise and thanksgiving to God.

This Thanksgiving finds the people still bowed with sorrow for the death of a great and good President. We mourn President McKinley because we so loved and honored him; and the manner of his death should awaken in the breasts of our people a keen anxiety for the country, and at the same time a resolute purpose not to be driven by any calamity from the path of strong, orderly, popular liberty which as a nation we have thus far safely trod.

Yet in spite of this great disaster, it is nevertheless true that no people on earth have such abundant cause for thanksgiving as we have. The past year in particular has been one of peace and plenty. We have prospered in things material and have been able to work for our own uplifting in things intellectual and spiritual. Let us remember that, as much has been given us, much will be expected from us; and that true homage comes from the heart as well as from the lips and shows itself in deeds. We can best prove our

thankfulness to the Almighty by the way in which on this earth and at this time each of us does his duty to his fellow men.

Now, therefore, I, Theodore Roosevelt, President of the United States, do hereby designate as a day of general thanksgiving Thursday, the 28th of this present November, and do recommend that throughout the land the people cease from their wonted occupations, and at their several homes and places of worship reverently thank the Giver of all good for the countless blessings of our national life.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this second day of November, A.D. 1901, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March third, 1891, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public

land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of Colorado, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there are hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Colorado and particularly described as follows, to wit:

In township forty-four (44) north, range eleven (11) east, the following sections: one (1) to three (3), both inclusive, east half of section four (4), sections ten (10) to fifteen (15), both inclusive, east half of section twenty-two (22), sections twenty-three (23) to twenty-six (26), both inclusive, and section thirty-five (35).

In township forty-five (45) north, range eleven (11) east, the following sections: one (1) to five (5), both inclusive, east half of sections six (6) and seven (7), sections eight (8) to seventeen (17), both inclusive, sections twenty (20) to twenty-eight (28), both inclusive, east half of section twenty-nine (29) and sections thirty-three (33) to thirty-six (36), both inclusive.

In township forty-three (43) north, range twelve (12) east, the following sections: one (1) to five (5), both inclusive, and sections eight (8) to twelve (12), both inclusive.

In township forty-four (44) north, range twelve (12) east, the following sections: one (1) to thirty-five (35), both inclusive.

In township forty-five (45) north, range twelve (12) east, the following sections: two (2) to eleven (11), both inclusive, and sections thirteen (13) to thirty-five (35), both inclusive.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The San Isabel Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this eleventh day of April, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas it is provided by section twenty-four of the act of Congress approved March third, eighteen hundred and ninety-one, entitled "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas the public lands in the Territory of Arizona, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a public reservation all those certain tracts, pieces, or parcels of land lying and being situate in the Territory of Arizona, and within the boundaries particularly described as follows, to wit:

Beginning at the northwest corner of township fifteen (15) south, range fourteen (14) east, Gila and Salt River Meridian, Arizona; thence southerly along the range line to its intersection with the third (3d) Standard Parallel south; thence easterly along said parallel to the northwest corner of section five (5), township sixteen (16) south, range fourteen (14) east; thence southerly along the section lines to the southwest corner of section twenty (20), said township; thence easterly to the southeast corner of said section; thence southerly along the section lines to the northeast corner of section eight (8), township seventeen (17) south, range fourteen (14) east; thence westerly to the northwest corner of said section; thence southerly along the section lines to the northeast corner of section thirty-one (31), said township; thence westerly to the northwest corner of said section; thence southerly along the range line to its intersection with the northern boundary of the San Ygnacio de la Canoa Grant, as confirmed by the United States Court of Private Land Claims; thence in a southeasterly and southwesterly

direction along the boundary of said grant to its intersection with the range line between ranges thirteen (13) and fourteen (14) east; thence southerly to the northeast corner of township nineteen (19) south, range thirteen (13) east; thence westerly along the township line to its intersection with the boundary of said grant; thence in a southwesterly and northwesterly direction along said boundary to its intersection with the section lines between sections twenty-eight (28) and twenty-nine (29) and thirty-two (32) and thirty-three (33), said township; thence southerly to the northeast corner of section eight (8), township twenty (20) south, range thirteen (13) east; thence westerly to the northwest corner of said section; thence southerly to the southwest corner of section twenty (20), said township; thence easterly to the southeast corner of said section; thence southerly to the southwest corner of section thirty-three (33), said township; thence easterly to the southeast corner of section thirty-five (35), said township; thence northerly to the northeast corner of said section; thence easterly to the southeast corner of section twenty-five (25), said township; thence southerly along the range line to its intersection with the fourth (4th) Standard Parallel south; thence easterly, along the said surveyed and unsurveyed parallel, to the point for its intersection with the range line between ranges fifteen (15) east and sixteen (16) east; thence northerly along said range line to the northwest corner of township nineteen (19) south, range sixteen (16) east; thence easterly to the southeast corner of section thirty-four (34), township eighteen (18) south, range seventeen (17) east; thence northerly along the section lines to the southwest corner of section fourteen (14), said township; thence easterly to the southeast corner of said section; thence northerly to the southwest corner of section one (1), said township; thence easterly to the southeast corner of said section; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section thirty-five (35), township seventeen (17) south, range seventeen (17) east; thence northerly to the northeast corner of said section; thence easterly to the southeast corner of section twenty-five (25), said township; thence northerly to the northeast corner of section twelve (12), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of section two (2), said township; thence westerly to the southeast corner of section thirty-three (33), township sixteen (16) south, range seventeen (17) east; thence northerly to the northeast corner of said section; thence westerly to the northwest corner of said section; thence

northerly to the northeast corner of the southeast quarter of section twenty-nine (29), said township; thence westerly along the quarter-section lines to the northeast corner of the southeast quarter of section twenty-five (25), township sixteen (16) south, range sixteen (16) east; thence northerly to the northeast corner of said section; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of section twenty-three (23), said township; thence westerly to the southeast corner of section seventeen (17), said township; thence northerly to the northeast corner of section eight (8), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of section six (6), said township; thence westerly along the third (3d) Standard Parallel south to the southeast corner of section thirty-five (35), township fifteen (15) south, range fifteen (15) east; thence northerly to the northeast corner of section twenty-six (26), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of section twenty-two (22), said township; thence westerly to the southeast corner of section seventeen (17), said township; thence northerly to the northeast corner of section eight (8), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of section six (6), said township; thence westerly to the southeast corner of section thirty-five township fourteen (14) south, range fourteen (14) east; thence northerly to the northeast corner of section twenty-six (26), said township; thence westerly to the northwest corner of section twenty-seven (27), said township; thence southerly to the southwest corner of section thirty-four (34), said township; thence westerly to the northwest corner, of township fifteen (15) south, range fourteen (14) east, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the tract of land reserved by this proclamation.

The reservation hereby established shall be known as The Santa Rita Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this eleventh day of April, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, The San Francisco Mountains Forest Reserves, in the Territory of Arizona, were established by proclamation dated August 17, 1898, under and by virtue of section twenty-four of the act of Congress, approved March 3, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, it is further provided by the act of Congress, approved June 4, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any Executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas, the public lands in the Territory of Arizona, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid acts of Congress, do hereby make known and proclaim that, for the purpose of consolidating into one reserve the lands heretofore embraced in the said San Francisco Mountains Forest Reserves and of including therein the other adjacent lands within the description hereinafter given, there is hereby reserved and set apart as a public forest reservation all the lands embraced within the following described boundaries and lying and being situate in the Territory of Arizona, to wit:

Beginning at the northwest corner of township twenty-two (22) north, range one (1) east, Gila and Salt River Meridian, Arizona; thence southerly along the said meridian, allowing for the proper offset on the fifth (5th) Standard Parallel north, to the southwest corner of township nineteen (19) south, range one (1) east; thence easterly along the surveyed and unsurveyed township line to the point for the northwest corner of township eighteen (18) north, range four (4) east; thence southerly along the unsurveyed range line to its intersection with the fourth (4th) Standard Parallel north; thence easterly along said parallel to the point for the northwest corner of township sixteen (16) north, range five (5) east; thence southerly to the point for the southwest corner of said township; thence easterly to the point for the northwest corner of township fifteen (15) north, range six (6) east; thence southerly to the point for the southwest corner of section eighteen (18), said township; thence easterly along the unsurveyed

section line to the point for the northwest corner of section nineteen (19), township fifteen (15) north, range seven (7) east; thence southerly to the southwest corner of said section; thence easterly along the unsurveyed section lines to the southwest corner of section nineteen (19), township fifteen (15) north, range nine (9) east; thence northerly to the northwest corner of said section; thence easterly along the section line to the southeast corner of section thirteen (13), said township; thence northerly to the northeast corner of section twelve (12), said township; thence easterly along the section lines to the southeast corner of section one (1), township fifteen (15) north, range eleven (11) east; thence northerly along the range line to its intersection with the fourth (4th) Standard Parallel north; thence westerly along said parallel to the southeast corner of township seventeen (17) north, range eleven (11) east; thence northerly along the surveyed and unsurveyed range line to the point for the northeast corner of township eighteen (18) north, range eleven (11) east; thence westerly to the southeast corner of township nineteen (19) north, range ten (10) east; thence northerly along the range line to its intersection with the fifth (5th) Standard Parallel north; thence westerly along said parallel to the point for the southeast corner of township twenty-one (21) north, range nine (9) east; thence northerly along the unsurveyed range line, allowing for the proper offset on the sixth (6th) Standard Parallel north, to the point for the northeast corner of township twenty-five (25) north, range nine (9) east; thence westerly along the surveyed and unsurveyed township line to the point for the northwest corner of township twenty-five (25) north, range three (3) east; thence southerly along the surveyed and unsurveyed range line, allowing for the proper offset on the sixth (6th) Standard Parallel north, to the northeast corner of township twenty-two (22) north, range two (2) east; thence westerly along the township line to the northwest corner of township twenty-two (22) north, range one (1) east, to the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: Provided, that this exception shall not continue to apply to any

particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Provided further, That nothing herein shall give any force or effect to any claim or right to any of the lands heretofore embraced within the said San Francisco Mountains Forest Reserves which would not have been entitled to recognition if said reserves as heretofore established had been continued in force without this consolidation.

The reserve hereby created shall be known as the San Francisco Mountains Forest Reserve.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

In witness whereof I have hereunto set my hand and caused the Seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this twelfth day of April, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of Nebraska, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Nebraska and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of section ten (10), township thirty-two (32) north, range thirty (30) west, Sixth (6th) Principal Meridian, Nebraska; thence westerly to the southeast corner of section six (6), said township; thence northerly to the northeast corner of the southeast quarter of said section; thence westerly along the quarter-section lines to the southeast corner of the northeast quarter of section five (5), township thirty-two (32) north, range thirty-one (31) west; thence northerly to the northeast corner of said section; thence westerly along the township line to the northwest corner of section six (6), township thirty-two (32) north, range thirty-three (33) west; thence southerly to the southwest corner of the northwest quarter of said section; thence westerly along the quarter-section line to the northwest corner of the southwest quarter of section two (2) township thirty-two (32) north, range thirty-four (34) west; thence southerly along the section lines to the southwest corner of section twenty-three (23), said township; thence easterly to the northwest corner of section thirty (30), township thirty-two (32) north, range thirty-three (33) west; thence

southerly to the southwest corner of said section; thence easterly to the northwest corner of section thirty-three (33), said township; thence southerly to the southwest corner of said section; thence easterly to the northwest corner of section two (2), township thirty-one (31) north, range thirty-three (33) West; thence southerly to the southwest corner of said section; thence easterly to the northwest corner of section ten (10), township thirty-one (31) north, range thirty-two (32) west; thence southerly to the southwest corner of the northwest quarter of section three (3), township thirty (30) north, range thirty-two (32) west; thence easterly along the quarter-section lines to the southeast corner of the northeast quarter of section two (2), township thirty (30) north, range thirty-one (31) west; thence northerly to the northeast corner of section thirty-five (35), township thirty-one (31) north, range thirty-one (31) west; thence easterly to the southeast corner of section twenty-five (25), said township; thence northerly to the southwest corner of section nineteen (19), township thirty-one (31) north, range thirty (30) west; thence easterly to the southeast corner of said section; thence northerly to the northeast corner of the southeast quarter of said section; thence easterly along the quarter-section line to the southeast corner of the northwest quarter of section twenty (20), said township; thence northerly along the quarter-section lines to the northeast corner of the southwest quarter of section thirty-two (32), township thirty-two (32) north, range thirty (30) west; thence westerly to the northwest corner of said quarter-section; thence northerly to the southwest corner of the northwest quarter of section twenty-nine (29), said township; thence easterly along the quarter-section lines to the southeast corner of the northeast quarter of section twenty-eight (28), said township; thence northerly to the southwest corner of section fifteen (15), said township; thence easterly to the southeast corner of said section; thence northerly to the northeast corner of section ten (10), said township, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any

particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

The reservation hereby established shall be known as The Niobrara Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this sixteenth day of April, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not,

as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of Nebraska, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Nebraska and within the boundaries particularly described as follows, to wit:

Beginning at the northeast corner of section twenty-seven (27), township twenty-two (22) north, range twenty-five (25) west, Sixth (6th) Principal Meridian, Nebraska; thence westerly to the southeast corner of section twenty (20), said township; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section thirteen (13), township twenty-two (22) north, range twenty-six (26) west; thence northerly to the northeast corner of the southeast quarter of section twelve (12), said township; thence westerly along the quarter-section line to the northeast corner of the southeast quarter of section ten (10), said township; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section six (6), said township; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section thirty-five (35), township twenty-three (23) north, range twenty-seven (27) west; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section twenty-eight (28), said township; thence northerly to the northeast corner of said section; thence westerly to the southeast corner of section twenty (20), said township; thence northerly to the northeast corner of said section; thence westerly along the section lines to the northwest corner of section twenty-three (23), township twenty-three (23) north, range twenty-eight (28) west; thence southerly along the section lines to the southwest corner of section two (2), township twenty-two (22) north, range twenty-eight (28) west; thence

easterly to the southeast corner of section one (1), said township; thence southerly along the range line to the southwest corner of the northwest quarter of the northwest quarter of section nineteen (19), township twenty-one (21) north, range twenty-seven (27) west; thence easterly along the quarter quarter-section lines to the southeast corner of the northeast quarter of the northeast quarter of section twenty-three (23), township twenty-one (21) north, range twenty-six (26) west; thence northerly to the southwest corner of section twelve (12), said township; thence easterly to the southeast corner of said section; thence northerly to the northeast corner of said section; thence easterly to the southeast corner of section five (5), township twenty-one (21) north, range twenty-five (25) west; thence northerly to the northeast corner of the southeast quarter of said section; thence easterly along the quarter-section lines to the southeast corner of the northeast quarter of section three (3), said township; thence northerly along the section lines to the northeast corner of section twenty-seven (27), township twenty-two (22) north, range twenty-five (25) west, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided* that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

The reservation hereby established shall be known as The Dismal River Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this sixteenth day of April, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas by an agreement between the Shoshone and Bannock Indians of the Fort Hall Reservation in Idaho, on the one part and certain commissioners of the United States on the other part, ratified by act of Congress approved June 6, 1900 (31 Stat., 672) the said Indians ceded, granted, and relinquished to the United States all right, title, and interest which they had to the following described land, the same being a part of the land obtained through the treaty of Fort Bridger on the third day of July, 1868, and ratified by the United States Senate on the sixteenth day of February, 1869:

All that portion of the said reservation embraced within and lying east and south of the following described lines:

Commencing at a point in the south boundary of the Fort Hall Indian Reservation, being the southwest corner of township nine (9) south, range thirty-four (34) east of the Boise meridian, thence running due north on the range line between townships 33 and 34 east to a point two (2) miles north of the township line between townships five (5) and six (6) south, thence due east to the range line between ranges 35 and 36 east, thence south on said range line four (4) miles, thence due east to the east boundary line of the reservation; from this point the east and south boundaries of the said reservation as it now exists to the point of beginning, namely, the southwest corner of township nine (9) south, range thirty-four (34) east, being the remainder of the description and metes and bounds of the said tract of land herein proposed to be ceded.

And whereas, in pursuance of said act of Congress ratifying said agreement, allotments of land have been regularly made to each Indian occupant who desired it, and a schedule has been made of the lands to be abandoned and the improvements thereon appraised, and such improvements will be offered for sale to the highest bidder at not less than the appraised price prior to the date fixed for the opening of the ceded lands to settlement, and the classification as to agricultural and grazing lands has been made;

And whereas, in the act of Congress ratifying said agreement it is provided:

That on the completion of the allotments and the preparation of the schedule provided for in the preceding section, and the classification of the lands as provided for herein, the residue of said ceded lands shall be opened to settlement by the proclamation of the President, and shall be subject to disposal under the homestead, townsite, stone and timber, and mining laws of the United States only, excepting as to price and excepting the sixteenth and thirty-sixth sections in each Congressional township, which shall be reserved for common school purposes and be subject to the laws of Idaho; *Provided*, That all purchasers of lands lying under the canal of the Idaho Canal Company, and which are susceptible of irrigation from the water from said canal, shall pay for the same at the rate of ten dollars per acre; all agricultural lands not under said canal shall be paid for at the rate of two dollars and fifty cents per acre, and grazing lands at the rate of one dollar and twenty-five cents per acre, one-fifth of the respective sums to be paid at time of original entry, and four-fifths thereof at the time of making final proof; but no purchaser shall be permitted in any manner to purchase more than one hundred and sixty acres of the land hereinbefore referred to; but the rights of honorably discharged Union soldiers and sailors, as defined and described in sections twenty-three hundred and four and twenty-three hundred and five of the Revised Statutes of the United States, shall not be abridged, except as to the sum to be paid as aforesaid.

No lands in sections sixteen and thirty-six now occupied, as set forth in article three of the agreement herein ratified, shall be reserved for school purposes, but the State of Idaho shall be entitled to indemnity for any lands so occupied: *Provided*, That none of said lands shall be disposed of under the townsite laws for less than ten dollars per acre: *And provided further*, That all of said lands within five miles of the boundary line of the town of Pocatello shall be sold at public auction, payable as aforesaid, under the direction of the Secretary of the Interior for not less than ten dollars per acre: *And provided further*, That any mineral lands within said five mile limit shall be disposed of under the mineral land laws of the United States, excepting that the price of such mineral lands shall be fixed at ten dollars per acre, instead of the price fixed by the said mineral land laws.

And whereas, all the conditions required by law to be performed prior to the opening of said lands to settlement and entry have been, as I hereby declare, duly performed, except the sale of the improvements mentioned

above, but as this is not considered a bar to the opening of the unallotted and unreserved lands to settlement and entry.

Now, therefore, I, Theodore Roosevelt, President of the United States of America, by virtue of the power vested in me by law, do hereby declare and make known that all of the lands so as aforesaid ceded by the Shoshone and Bannock Indians, saving and excepting all lands allotted to the Indians, and saving and excepting the lands on which the Indian improvements have been appraised, and saving and excepting the sixteenth and thirty-sixth sections in each Congressional township, and saving and excepting Lots 7 and 8, section 21, NW 1/4 SW 1/4 and Lots 9 and 10, section 22, T. 9 S., R. 38 E., B.M., known as "Lava Hot Springs," and saving and excepting all of the lands within five miles of the boundary line of the town of Pocatello, Idaho and saving and excepting the lands ceded under the act of September 1, 1888 (25 Stat, 452), for the purposes of a townsite, will on the 17th day of June, 1902, at and after the hour of 12 o'clock, noon (Mountain Standard time), be opened to settlement and entry under the terms of and subject to all the conditions, limitations, reservations, and restrictions contained in the statutes above specified, and the laws of the United States applicable thereto.

In view of the provision in said act "That all of said lands within five miles of the boundary line of the town of Pocatello shall be sold at public auction, payable as aforesaid, under the direction of the Secretary of the Interior for not less than ten dollars per acre," the lands "within five miles of the boundary line of the town of Pocatello." saving and excepting all lands allotted to the Indians, and saving and excepting the sixteenth and thirty-sixth sections in each Congressional township, and saving and excepting the lands ceded under the act of September 1, 1888 (25 Stat., 452), for the purposes of a townsite, will on the 17th day of July, 1902, at and after the hour of 12 o'clock, noon (Mountain Standard time), be offered at public auction at not less than ten dollars per acre, under the terms and subject to all the conditions, limitations, reservations and restrictions, contained in the statutes above specified, and the laws of the United States applicable thereto.

Because of the provision in the act ratifying said agreement that "The purchaser of said improvements shall have thirty days after such purchase

for preference right of entry, under the provisions of this act, of the lands upon which the improvements purchased by him are situated, not to exceed one hundred and sixty acres," the said lands upon which such Indian improvements purchased are situated outside of the lands within five miles of the town of Pocatello, shall for the period of thirty days after said opening be subject to homestead entry, townsite entry, stone and timber entry, and entry under the mineral laws only by those who may have purchased the improvements thereon, and who are accorded a preference right of entry for thirty days as aforesaid, such entries to be made in accordance with the terms and conditions of this act. Persons entitled to make entry under this preference right will be permitted to do so at any time during the said period of thirty days following the opening, and at the expiration of that period any of said lands not so entered will come under the general provisions of this proclamation.

The purchaser of the improvements on lands situated within five miles of the town of Pocatello will have no preference right of entry of the tract on which such improvements are situated, as the law provides that "all of said lands within five miles of the boundary line of the town of Pocatello shall be sold at public auction."

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington the seventh day of May, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, The Big Horn Forest Reserve, in the State of Wyoming, was established by proclamation dated February 22d, 1897, under and by virtue of section twenty-four of the act of Congress, approved March 3d, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, it is further provided by the act of Congress, approved June 4th, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30th, 1898, and for other purposes," that The President is hereby authorized at any time to modify any Executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve; under such provision, the boundary lines of the said forest reserve were changed and enlarged by proclamation dated June 29th, 1900;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4th, 1897, do hereby make known and proclaim that there is hereby reserved from entry or settlement, and added to and made a part of the aforesaid Big Horn Forest Reserve, all those certain tracts, pieces or parcels of land lying and being situate in the State of Wyoming and particularly described as follows, to wit:

The west half of township fifty-six (56) north, range eighty-seven (87) west; all of townships fifty-five (55) and fifty-six (56) north, range eighty-

eight (88) west; and the south half of township fifty-seven (57) north, range eighty-eight (88) west, sixth (6th) Principal Meridian, Wyoming.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, That this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this twenty-second day of May, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March 3d, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the State of Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Wyoming and within the boundaries particularly described as follows, to wit:

Beginning at the point where the range line between ranges seventy-six (76) and seventy-seven (77) west, sixth (6th) Principal Meridian, Wyoming, intersects the boundary line between the States of Wyoming and Colorado; thence westerly along said state boundary line to a point where it intersects the range line between ranges eighty (80) and eighty-one (81) west; thence northerly along said range line, allowing for the proper offset on the third (3rd) Standard Parallel north, to the southeast corner of township fourteen (14) north, range eighty-one (81) west; thence westerly to the southwest corner of said township; thence northerly along the range line allowing for the proper offset on the fourth (4th) Standard Parallel north, to the northwest corner of township seventeen (17) north, range eighty-one (81) west; thence easterly to the northeast corner of said township; thence southerly to the southeast corner of said township; thence easterly along the fourth (4th) Standard Parallel north to the southwest corner of township seventeen (17) north, range seventy-nine (79) west; thence northerly to the northwest corner of said township; thence easterly to the northeast corner of

section five (5), township seventeen (17) north, range seventy-eight (78) west; thence southerly along the section lines, allowing for the proper offset on the fourth (4th) Standard Parallel north, to the southeast corner of section thirty-two (32), township fifteen (15) north, range seventy-eight (78) west; thence westerly to the northeast corner of township fourteen (14) north, range eighty (80) west; thence southerly to the southeast corner of said township; thence easterly along the township line to the northeast corner of township thirteen (13) north, range seventy-seven (77) west; thence southerly along the range line, allowing for the proper offset on the third (3rd) Standard Parallel north, to the point where it intersects the boundary line between the States of Wyoming and Colorado, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

The reservation hereby established shall be known as The Medicine Bow Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this twenty-second day of May, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:

JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, the Yellowstone Park Timber Land Reserve, in the State of Wyoming, was established by proclamation dated March 30, 1891, and the boundary lines thereof were corrected by proclamation dated September 10, 1891, and the Teton Forest Reserve, in the State of Wyoming, was established by proclamation dated February 22, 1897, under and by virtue of section twenty-four of the act of Congress, approved March 3, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, it is further provided by the act of Congress, approved June 4, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any Executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas, the public lands in the State of Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the

public good would be promoted by setting apart and reserving said lands as public reservations;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid acts of Congress, do hereby make known and proclaim that, the executive proclamations of March 30, 1891 (26 Stat., 1565), September 10, 1891 (27 Stat., 989), and February 22, 1897 (29 Stat., 906), are hereby superseded, it being one purpose of this proclamation to establish the two forest reserves hereinafter named in place of the reserves heretofore created by said executive proclamations; and, therefore, there are hereby reserved from entry or settlement and set apart as Public Reservations all those certain tracts, pieces or parcels of land lying and being situate in the State of Wyoming and within the boundaries particularly described as follows, to wit:

THE YELLOWSTONE FOREST RESERVE.

Beginning at the point where the eastern boundary line of the Yellowstone National Park intersects the boundary line between the States of Wyoming and Montana; thence easterly along said state boundary line to the point for its intersection with the range line between ranges one hundred and three (103) and one hundred and four (104) west, sixth (6th) Principal Meridian, Wyoming; thence southerly along said unsurveyed range line to the point for its intersection with the fourteenth (14th) Standard Parallel north; thence easterly along said parallel to the northeast corner of township fifty-six (56) north, range one hundred and four (104) west; thence southerly along the range line to the southeast corner of township fifty-three (53) north, range one hundred and four (104) west; thence westerly along the thirteenth (13th) Standard Parallel north to the northwest corner of township fifty-two (52) north, range one hundred and four (104) west; thence southerly along the range line to the southwest corner of township forty-nine (49) north, range one hundred and four (104) west; thence easterly along the twelfth (12th) Standard Parallel north to the northeast corner of section four (4), township forty-eight (48) north, range one hundred and four (104) west; thence southerly along the section lines to the southeast corner of section thirty-three (33), said township; thence easterly to the northeast corner of township forty-seven (47) north, range one hundred and four (104) west; thence southerly to the southeast corner of said township; thence easterly to the northeast corner of township forty-six (46) north, range one hundred and three (103) west; thence southerly to the southeast corner of said township; thence easterly to the northeast corner of township forty-five (45) north, range one hundred and two (102) west; thence southerly along the range line, allowing for the proper offset on the eleventh (11th) Standard Parallel north, to its intersection with the southern boundary line of Big Horn County, Wyoming, as defined in Sec. 982 of the Revised Statutes of Wyoming (1899); thence, in a general northwesterly and northerly direction, along said county line to its intersection with the southern boundary of the Yellowstone National Park; thence, in an easterly and northerly direction, along the southern and eastern boundaries of said park to the point of intersection with the boundary line between the States of Wyoming and Montana, the place of beginning, to be known as the Yellowstone Forest Reserve;

THE TETON FOREST RESERVE.

Beginning at the point where the boundary line between the States of Wyoming and Idaho intersects the southern boundary of the Yellowstone National Park; thence easterly along the southern boundary of said park to its intersection with the western boundary line of Big Horn County, Wyoming, as defined in Sec. 982 of the Revised Statutes of Wyoming (1899); thence, in a general southerly and southeasterly direction, along said county line to the northwest corner of the Wind River or Shoshone Indian Reservation; thence, in a general southwesterly direction, along the western boundary of said reservation to its intersection with the township line between townships forty-two (42) and forty-three (43) north; thence westerly along said township line to the southwest corner of township forty-three (43) north, range one hundred and seven (107) west; thence northerly to the northwest corner of said township; thence westerly to the northeast corner of township forty-three (43) north, range one hundred and nine (109) west; thence southerly along the range line to the southeast corner of township forty-one (41) north, range one hundred and nine (109) west; thence easterly along the tenth (10th) Standard Parallel north to its intersection with the western boundary of the Wind River or Shoshone Indian Reservation; thence, in a southeasterly and southerly direction, along the western boundary of said reservation to the point for its intersection with the township line between townships thirty-three (33) and thirty-four (34) north; thence westerly along said surveyed and unsurveyed township line to the southwest corner of section thirty-four (34), township thirty-four (34) north, range one hundred and nine (109) west; thence northerly to the northwest corner of section three (3), said township; thence westerly to the southeast corner of township thirty-five (35) north, range one hundred and ten (110) west; thence northerly to the north east corner of said township; thence westerly to the southwest corner of section thirty-four (34), township thirty-six (36) north, range one hundred and ten (110) west; thence northerly to the northwest corner of section three (3), said township; thence westerly along the ninth (9th) Standard Parallel north to the southeast corner of township thirty-seven (37) north, range one hundred and ten (110) west; thence northerly along the range line to the southeast corner of township forty (40) north, range one hundred and ten (110) west; thence westerly to the southwest corner of said township; thence southerly along

the range line to the southeast corner of township thirty-seven (37) north, range one hundred and eleven (111) west; thence westerly along the ninth (9th) Standard Parallel north to the northeast corner of section four (4), township thirty-six (36) north, range one hundred and twelve (112) west; thence southerly to the southeast corner of section thirty-three (33), said township; thence westerly to the northeast corner of township thirty-five (35) north, range one hundred and thirteen (113) west; thence southerly to the southeast corner of said township; thence westerly to the southwest corner of said township; thence southerly along the range line to the southeast corner of township thirty-three (33) north, range one hundred and fourteen (114) west; thence westerly along the eighth (8th) Standard Parallel north to the northeast corner of township thirty-two (32) north, range one hundred and fifteen (115) west; thence southerly along the range line to the southeast corner of township twenty-nine (29) north, range one hundred and fifteen (115) west; thence westerly along the seventh (7th) Standard Parallel north to the southeast corner of township twenty-nine (29) north, range one hundred and eighteen (118) west; thence northerly to the northeast corner of said township; thence westerly to the southeast corner of the southwest quarter of section thirty-three (33), township thirty (30) north, range one hundred and eighteen (118) west; thence northerly along the quarter-section lines to the northeast corner of the southwest quarter of section sixteen (16), said township; thence westerly to the northwest corner of said quarter-section; thence northerly along the section lines to the northeast corner of section five (5), said township; thence westerly to the northwest corner of said section; thence northerly to the northeast corner of the southeast quarter of section thirty-one (31), township thirty-one (31) north, range one hundred and eighteen (118) west; thence westerly to the northwest corner of said quarter-section; thence northerly along the quarter-section lines to the point of intersection with the eighth (8th) Standard Parallel north; thence easterly along said parallel to the southeast corner of township thirty-three (33) north, range one hundred and eighteen (118) west; thence northerly to the northeast corner of said township; thence westerly to the southeast corner of the southwest quarter of section thirty-four (34), township thirty-four (34) north, range one hundred and eighteen (118) west; thence northerly to the northeast corner of the southwest quarter of section twenty-seven (27), said township; thence westerly to the northwest corner of said quarter-section; thence northerly to the northwest

corner of said section; thence westerly to the southeast corner of the southwest quarter of section twenty-one (21), said township; thence northerly along the quarter-section lines to the northeast corner of the southwest quarter of section nine (9), said township; thence westerly to the northwest corner of said quarter-section; thence northerly to the northeast corner of section eight (8), said township; thence westerly to the southeast corner of the southwest quarter of section five (5), said township; thence northerly to the northeast corner of said quarter-section; thence westerly to the northwest corner of said quarter-section; thence northerly to the northeast corner of the southeast quarter of section thirty-one (31), township thirty-five (35) north, range one hundred and eighteen (118) west; thence westerly to the northwest corner of the southwest quarter of said section; thence northerly along the range line to its intersection with the ninth (9th) Standard Parallel north; thence westerly along said parallel to its intersection with the boundary line between the States of Wyoming and Idaho; thence northerly along said state boundary line to the point where it intersects the southern boundary of the Yellowstone National Park, the place of beginning, to be known as The Teton Forest Reserve; excepting and excluding from reservation all those certain tracts, pieces or parcels of land lying and being situate in the State of Wyoming and particularly described as follows, to wit:

Township forty (40) north, range one hundred and sixteen (116) west; townships forty-one (41) north, ranges one hundred and fifteen (115) and one hundred and sixteen (116) west; and townships forty-two (42) north, ranges one hundred and fifteen (115) and one hundred and sixteen (116) west.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, That this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Provided further, That nothing herein shall give any force or effect to any claim or right to any of the lands heretofore embraced within the Yellowstone Park Timber Land Reserve or the Teton Forest Reserve which would not have been entitled to recognition if said reserves as heretofore established had been continued in force without being merged into larger reserves as hereinbefore provided.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington this twenty-second day of May, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

[SEAL.]

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, by Executive Order dated December 27, 1875, Section 7, township 15 south, range 2 east, San Bernardino meridian, California, was with certain other tracts of land withdrawn from the public domain and

reserved for the use of the Capitan Grande band or Village of Mission Indians; and

Whereas, the Commission appointed under the provisions of the act of Congress approved January 12, 1891, entitled "An act for the relief of the Mission Indians in the State of California" (U.S. Statutes at Large, vol. 26, page 712), selected for the said Capitan Grande band or village of Indians certain tracts of land and intentionally omitted and excluded from such selection the said section 7, township 15 south, range 2 east, and reported that the tracts thus omitted included the lands upon which were found the claims of Jacob Kühner and others; and

Whereas, the report and recommendations of the said Commission were approved by Executive Order dated December 29, 1891, which Order also directed that "All of the lands mentioned in said report are hereby withdrawn from settlement and entry until patents shall have issued for said selected reservations, and until the recommendations of said Commission shall be fully executed, and, by the proclamation of the President of the United States, the lands or any part thereof shall be restored to the public domain;" and

Whereas a patent was issued March 10, 1894, to the said Indians for the lands selected by the Commission as aforesaid and which patent also excluded the said section 7, township 15 south, range 2 east; and

Whereas it appears that the said Jacob Kühner cannot make the requisite filings on the land occupied by him until it shall have been formally restored to the public domain, and that no good reason appears to exist for the further reservation of the said section for the said band of Indians:

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested, do hereby declare and make known that the Executive Orders dated December 27, 1875, and December 29, 1891, are so far modified as to except from their provisions section 7 of township 15 south, range 2 east, San Bernardino meridian, and the said section is hereby restored to the public domain.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington this twenty-ninth day of May, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

[SEAL.]

THEODORE ROOSEVELT.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the Yellowstone Forest Reserve, in the State of Wyoming, was established by proclamation dated May 22, 1902, under the provisions of the acts of March 3, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," and June 4, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," superseding the Yellowstone Park Timber Land Reserve;

And whereas, the public lands in the State of Wyoming, hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid acts of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement, and added to and made a part of the aforesaid Yellowstone Forest Reserve, all those certain tracts, pieces or parcels of land lying and

being situate in the State of Wyoming and particularly described as follows, to wit:

Sections one (1), two (2) and three (3), township forty-eight (48) north, range one hundred and four (104) west; and all of township forty-nine (49) north, range one hundred and four (104) west, sixth (6th) Principal Meridian, Wyoming.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this thirteenth day of June, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, in the opening of the Kiowa, Comanche, Apache, and Wichita Indian lands in the Territory of Oklahoma, by proclamation dated July 4, 1901, pursuant to section six of the act of Congress approved June 6, 1900 (31 Stat., 672, 676), the west half of the southeast quarter of the southeast quarter and lot fourteen, of section sixteen in township seven north, of range ten west of the Indian principal meridian, containing thirty-eight acres and sixty-hundredths of an acre, were reserved for the use of the Kiowa and Comanche Indian Agency;

And whereas it appears that said land is no longer used or required for use by said Indian agency, and that it adjoins the city of Anadarko, Oklahoma Territory, and is needed by said city for park purposes, the mayor of which city has applied to make entry thereof for said purposes under the act of Congress approved September 30, 1890 (26 Stat., 502).

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section six of said act of Congress of June 6, 1900, do hereby declare and make known that said land is hereby restored to the public domain, to be disposed of to said city for park purposes under said act of Congress approved September 30, 1890.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this twenty-third day of June, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:

DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, the White River Plateau Timber Land Reserve, in the State of Colorado, was established by proclamation dated October 16th, 1891, under and by virtue of section twenty-four of the act of Congress, approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," which provides, "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof."

And whereas, it is further provided by the act of Congress, approved June 4th, 1897, entitled, "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30th, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any Executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress, approved June 4th, 1897, do hereby make known and proclaim that the boundary lines of the aforesaid White River Plateau Timber Land Reserve are hereby changed so as to read as follows:

Beginning at the northwest corner of section twenty-seven (27), township five (5) north, range ninety-one (91) west, sixth (6th) Principal Meridian, Colorado; thence easterly along the section lines to the northeast corner of section twenty-nine (29), township five (5) north, range ninety (90) west; thence southerly to the southeast corner of said section; thence easterly along the section lines to the northeast corner of section thirty-five (35), said township; thence southerly to the southeast corner of said section; thence easterly along the first (1st) correction line north to the northeast corner of township four (4) north, range ninety (90) west; thence southerly to the southeast corner of section twenty-five (25), said township; thence westerly to the southwest corner of said section; thence southerly along the section lines to the northwest corner of section twelve (12), township three (3) north, range ninety (90) west; thence easterly along the section lines to the southwest corner of section four (4), township three (3) north, range eighty-nine (89) west; thence northerly along the section lines to the northwest corner of section twenty-one (21), township four (4) north, range eighty-nine (89) west; thence easterly along the section lines to the northeast corner of section twenty-four (24), said township; thence southerly to the southeast corner of said township; thence easterly to the northeast corner of section six (6), township three (3) north, range eighty-eight (88) west; thence southerly along the section lines to the northwest corner of section seventeen (17), said township; thence easterly to the northeast corner of said section; thence southerly to the southeast corner of said section; thence easterly to the northeast corner of section twenty-one (21), said township; thence southerly along the section lines to the northwest corner of section thirty-four (34), said township; thence easterly along the section lines to the northeast corner of section thirty-six (36), said township; thence northerly to the southeast corner of section twenty-four (24), said township; thence westerly to the southwest corner of said section; thence northerly to the northwest corner of said section; thence westerly to the southwest corner of section fourteen (14), said township; thence northerly to the northwest corner of said section; thence westerly to the southwest corner of section ten (10), said township; thence northerly to the northwest corner of said section; thence westerly to the southwest corner of section four (4), said township; thence northerly along the section lines to the northwest corner of section nine (9), township four (4) north, range eighty-eight (88) west; thence westerly along the first (1st) correction line

north to the southwest corner of section thirty-four (34), township five (5) north, range eighty-nine (89) west; thence northerly along the section lines to the northwest corner of section twenty-two (22), said township; thence easterly along the section lines to the northeast corner of section twenty-four (24), township five (5) north, range eighty-six (86) west; thence southerly along the range line, allowing for the proper offsets on the first (1st) correction line north and on the base line, to the southeast corner of township two (2) south, range eighty-six (86) west; thence westerly along the township line to the northeast corner of section four (4), township three (3) south, range eighty-seven (87) west; thence southerly along the section lines to the southeast corner of section thirty-three (33), township four (4) south, range eighty-seven (87) west; thence westerly along the township line to the southwest corner of township four (4) south, range ninety-one (91) west; thence northerly to the northwest corner of said township; thence westerly along the township line to the southwest corner of township three (3) south, range ninety-three (93) west; thence northerly along the range line to the northwest corner of township two (2) south, range ninety-three (93) west; thence easterly along the township line to the southwest corner of section thirty-four (34), township one (1) south, range ninety-two (92) west; thence northerly along the section lines to the northwest corner of section twenty-seven (27), said township; thence easterly along the section lines to the northeast corner of the northwest quarter of section twenty-six (26), township one (1) south, range ninety-one (91) west; thence southerly along the quarter-section lines to the southeast corner of the southwest quarter of section thirty-five (35), said township; thence easterly to the northeast corner of section two (2), township two (2) south, range ninety-one (91) west; thence southerly to the southeast corner of said section; thence easterly to the northeast corner of the northwest quarter of section twelve (12), said township; thence southerly along the quarter-section lines to the southeast corner of the southwest quarter of section thirteen (13), said township; thence easterly along the section lines to the southwest corner of the southeast quarter of section eighteen (18), township two (2) south, range ninety (90) west; thence northerly along the quarter-section lines to the northwest corner of the northeast quarter of section six (6), said township; thence westerly to the southwest corner of township one (1) south, range ninety (90) west; thence northerly to the southeast corner of section twenty-five (25), township one (1) south, range ninety-one (91) west; thence

westerly to the southwest corner of the southeast quarter of said section; thence northerly to the northwest corner of the northeast quarter of said section; thence easterly to the northeast corner of said section; thence northerly to the southeast corner of section thirteen (13), said township; thence westerly to the southwest corner of said section; thence northerly to the northwest corner of said section; thence easterly to the northeast corner of said section; thence northerly to the northeast corner of said township; thence easterly along the base line to the southwest corner of township one (1) north, range ninety (90) west; thence northerly to the northwest corner of section thirty-one (31), said township; thence easterly to the northeast corner of said section; thence northerly to the northwest corner of the southwest quarter of section twenty-nine (29), said township; thence easterly to the northeast corner of the southeast quarter of said section; thence northerly to the northwest corner of section twenty-eight (28), said township; thence easterly to the northeast corner of said section; thence northerly to the northwest corner of the southwest quarter of section twenty-two (22), said township; thence easterly to the northeast corner of the southeast quarter of said section; thence northerly to the southeast corner of section fifteen (15), said township; thence westerly along the section lines to the northeast corner of section nineteen (19), said township; thence southerly to the southeast corner of the northeast quarter of said section; thence westerly to the southwest corner of the northwest quarter of said section; thence southerly to the southeast corner of section twenty-four (24), township one (1) north, range ninety-one (91) west; thence westerly to the southwest corner of said section; thence southerly to the southeast corner of section twenty-six (26), said township; thence westerly to the southwest corner of said section; thence southerly to the southeast corner of section thirty-four (34), said township; thence westerly along the base line to the northwest corner of township one (1) south, range ninety-one (91) west; thence southerly to the southeast corner of section twelve (12), township one (1) south, range ninety-two (92) west; thence westerly along the section lines to the southwest corner of section ten (10), said township; thence northerly along the section lines to the northwest corner of section three (3), said township; thence easterly along the base line to the southwest corner of section thirty-four (34), township one (1) north, range ninety-two (92) west; thence northerly along the surveyed and unsurveyed section lines to the point for the intersection with the township line between townships two (2)

and three (3) north; thence easterly along the said township line to the southwest corner of section thirty-four (34), township three (3) north, range ninety-one (91) west; thence northerly along the section lines to the northwest corner of section ten (10), township four (4) north, range ninety-one (91) west; thence westerly along the first (1st) correction line north to the southwest corner of section thirty-four (34), township five (5) north, range ninety-one (91) west; thence northerly along the section lines to the northwest corner of section twenty-seven (27), said township, the place of beginning.

The lands hereby excluded from the reservation and restored to the public domain shall be open to settlement from date hereof, but shall not be subject to entry, filing or selection until after ninety days' notice by such publication as the Secretary of the Interior may prescribe.

This reservation shall hereafter be known as The White River Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this twenty-eighth day of June, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas the President on August 20, 1901, issued his proclamation stating that he has been advised by the Louisiana Purchase Exposition Commission, pursuant to the provisions of section 9 of the act of Congress approved March 3, 1901, entitled "An act to provide for celebrating the one hundredth anniversary of the purchase of the Louisiana Territory by the United States by holding an international exhibition of arts, industries, manufactures, and the products of the soil, mine, forest, and sea in the city of St. Louis, in the State of Missouri," that provision had been made for grounds and buildings for the uses specified in the said mentioned act of Congress;

Whereas it was declared and proclaimed by the President in his aforesaid proclamation that "such international exhibition would be opened in the city of St. Louis, in the State of Missouri, not later than the first day of May, 1903, and be closed not later than the first day of December thereafter;"

And whereas section 8 of the act of Congress approved June 28, 1902, entitled "An act making appropriations for sundry civil expenses of the government for the fiscal year ending June 30, 1903, and for other purposes," fixes a subsequent date for the holding of the said international exhibition and specifically states that "said commission shall provide for the dedication of the buildings of the Louisiana Purchase Exposition, in said city of St. Louis, not later than the thirtieth day of April, 1903, with appropriate ceremonies, and thereafter said exposition shall be opened to visitors at such time as may be designated by said company, subject to the approval of said commission, not later than the first day of May, 1904, and shall be closed at such time as the national commission may determine, subject to the approval of said company, but not later than the first day of December thereafter;"

Now, therefore, I, Theodore Roosevelt, President of the United States, do hereby declare and proclaim the aforesaid provision of law to the end that it may definitely and formally be known that such international exhibition will be opened in the city of St. Louis, in the State of Missouri, not later than May 1, 1904, and will be closed not later than December first of that year.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, the first day of July, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
DAVID J. HILL,
Acting Secretary of State.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas, it is provided by section twenty-four of the act of Congress, approved March 3rd, 1891, entitled, "An act to repeal timber-culture laws, and for other purposes," "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas, the public lands in the Territory of Arizona, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power in me vested by section twenty-four of the aforesaid act of Congress, do hereby make known and proclaim that there is hereby reserved from entry or settlement and set apart as a Public Reservation all those certain tracts, pieces or parcels of land lying and being situate in the Territory of Arizona, and within the boundaries particularly described as follows, to wit:

Beginning at the northwest corner of township thirteen (13) south, range fourteen (14) east, Gila and Salt River Meridian, Arizona; thence northerly to the point for the northwest corner of section nineteen (19), township twelve (12) south, range fourteen (14) east; thence easterly along the unsurveyed section lines to the point for the northeast corner of section twenty-one (21), said township; thence northerly along the unsurveyed section lines to the point for the northwest corner of section three (3), said township; thence easterly to the point for the northeast corner of said township; thence northerly to the point for the northwest corner of township eleven (11) south, range fifteen (15) east; thence easterly along the second (2nd) standard parallel south to the point for the northeast corner of said township; thence southerly to the point for the southeast corner of section thirteen (13), said township; thence easterly along the unsurveyed section lines to the northeast corner of section twenty-four (24), township eleven (11) south, range seventeen (17) east; thence southerly along the unsurveyed range line to the point for the southeast corner of section twelve (12), township thirteen (13) south, range seventeen (17) east; thence westerly along the unsurveyed section lines to the point for the southwest corner of section seven (7), township thirteen (13) south, range fifteen (15) east; thence northerly to the point for the northwest corner of said township; thence westerly to the northwest corner of township thirteen (13) south, range fourteen (14) east, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any

particular tract of land unless the entryman, settler or claimant continues to comply with the law under which the entry, filing or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

The reservation hereby established shall be known as The Santa Catalina Forest Reserve.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington this second day of July, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas, satisfactory proof has been given to me by the Government of Cuba that no discriminating duties of tonnage or imposts are imposed or levied in the ports of Cuba, upon vessels wholly belonging to citizens of the United States or upon the produce, manufactures, or merchandise imported in the same from the United States, or from any foreign country:

Now, therefore, I, Theodore Roosevelt, President of the United States of America, by virtue of the authority vested in me by section 4228 of the Revised Statutes of the United States, do hereby declare and proclaim that, from and after the date of this, my Proclamation, so long as vessels of the United States and their cargoes shall be exempt from discriminating duties as aforesaid, any such duties on Cuban vessels entering the ports of the United States, or on the produce, manufactures, or merchandise imported in such vessels, shall be suspended and discontinued, and no longer.

In testimony whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, the third day of July, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA.

A PROCLAMATION.

Whereas many of the inhabitants of the Philippine archipelago were in insurrection against the authority and sovereignty of the kingdom of Spain at divers times from August, 1896, until the cession of the archipelago by that kingdom to the United States of America, and since such cession many of the persons so engaged in insurrection have until recently resisted the authority and sovereignty of the United States; and

Whereas the insurrection against the authority and sovereignty of the United States is now at an end, and peace has been established in all parts of the archipelago except in the country inhabited by the Moro tribes, to which this proclamation does not apply; and

Whereas during the course of the insurrection against the kingdom of Spain and against the government of the United States, persons engaged therein, or those in sympathy with and abetting them, committed many acts in violation of the laws of civilized warfare; but it is believed that such acts were generally committed in ignorance of these laws, and under orders issued by the civil or military insurrectionary leaders; and

Whereas it is deemed to be wise and humane, in accordance with the beneficent purposes of the government of the United States toward the Filipino people, and conducive to peace, order and loyalty among them, that the doers of such acts who have not already suffered punishment shall not be held criminally responsible, but shall be relieved from punishment for participation in these insurrections and for unlawful acts committed during the course thereof by a general amnesty and pardon;

Now, therefore, be it known that I, Theodore Roosevelt, President of the United States of America, by virtue of the power and authority vested by the Constitution, do hereby proclaim and declare, without reservation or condition, except as hereinafter provided, a full and complete pardon and amnesty to all persons in the Philippine archipelago who have participated in the insurrections aforesaid, or who have given aid and comfort to persons participating in said insurrections, for the offenses of treason or sedition, and for all offenses political in their character committed in the course of such insurrections pursuant to orders issued by the civil or military insurrectionary authorities, or which grow out of internal political feuds or dissensions between Filipinos and Spaniards, or the Spanish authorities, or which resulted from internal political feuds or dissensions among the Filipinos themselves during either of said insurrections.

Provided, however, that the pardon and amnesty hereby granted shall not include such persons committing crimes since May 1, 1902, in any province of the archipelago in which at the time civil government was established, nor shall it include such persons as have been heretofore finally convicted

of the crimes of murder, rape, arson, or robbery, by any military or civil tribunal organized under the authority of Spain or of the United States of America, but special application may be made to the proper authority for pardon by any person belonging to the exempted classes and such clemency as is consistent with humanity and justice will be liberally extended; and, further

Provided, That this amnesty and pardon shall not affect the title or right of the Government of the United States or that of the Philippine Islands to any property or property rights heretofore used or appropriated by the military or civil authorities of the Government of the United States or that of the Philippine Islands organized under authority of the United States by way of confiscation or otherwise; and

Provided further, That every person who shall seek to avail himself of this proclamation shall take and subscribe the following oath before any authority in the Philippine archipelago authorized to administer oaths, namely: "I solemnly swear (or affirm) that I recognize and accept the supreme authority of the United States of America in the Philippine Islands and will maintain true faith and allegiance thereto; that I impose upon myself this obligation voluntarily without mental reservation or purpose of evasion so help me God."

Given under my hand at the city of Washington, this 4th day of July, A.D. 1902, and in the one hundred and twenty-seventh year of the Independence of the United States.

THEODORE ROOSEVELT.

By the President:
ELIHU ROOT,
Secretary of War.

Gen. Chaffee is relieved of his civil duties, and the Philippine Commission is made the superior authority in the following order:

The insurrection against the sovereign authority of the United States in the Philippine archipelago having ended, and provincial civil governments having been established throughout the entire territory of the archipelago not inhabited by Moro tribes, under the instructions of the President to the Philippine Commission, dated April 7, 1900, now ratified and confirmed by the act of Congress approved July 1, 1902, entitled "An act temporarily to provide for the administration of affairs of civil government in the Philippine Islands, and for other purposes," the general commanding the division of the Philippines is hereby relieved from the further performance of the duties of military governor, and the office of military governor in said archipelago is terminated. The general commanding the Division of the Philippines and all military officers in authority therein will continue to observe the direction contained in the aforesaid instructions of the President that the military forces in the division of the Philippines shall be at all times subject, under the orders of the military commander, to the call of the civil authorities for the maintenance of law and order, and the enforcement of their authority.

Finally the President, through Secretary Root, pronounces the following eulogy upon the United States Army:

HEADQUARTERS OF THE ARMY,
ADJUTANT-GENERAL'S OFFICE,
Washington, July 4, 1902.

General Order, No. 66.

The following has been received from the War Department:

WAR DEPARTMENT, *Washington, July 4, 1902.*

To the Army of the United States:

The President, upon this anniversary of national independence, wishes to express to the officers and enlisted men of the United States Army his deep appreciation of the service they have rendered to the country in the great and difficult undertakings which they have brought to a successful conclusion during the past year.

He thanks the officers and the enlisted men who have been maintaining order and carrying on the military government in Cuba, because they have faithfully given effect to the humane purposes of the American people. They have with sincere kindness helped the Cuban people to take all the successive steps necessary to the establishment of their own constitutional government. During the time required for that process they have governed Cuba wisely,

regarding justice and respecting individual liberty; have honestly collected and expended for the best interests of the Cuban people the revenues, amounting to over \$60,000,000; have carried out practical and thorough sanitary measures, greatly improving the health and lowering the death rate of the island. By patient, scientific research they have ascertained the causes of yellow fever, and by good administration have put an end to that most dreadful disease which has long destroyed the lives and hindered the commercial prosperity of the Cubans. They have expedited justice and secured protection for the rights of the innocent, while they have cleansed the prisons and established sound discipline and healthful conditions for the punishment of the guilty.

They have re-established and renovated and put upon a substantial basis adequate hospitals and asylums for the care of the unfortunate. They have established a general system of free common schools throughout the island, in which over two hundred thousand children are in actual attendance. They have constructed great and necessary public works. They have gradually trained the Cubans themselves in all branches of administration, so that the new government upon assuming power has begun its work with an experienced force of Cuban civil service employees competent to execute its orders. They have borne themselves with dignity and self-control, so that nearly four years of military government have passed unmarred by injury or insult to man or woman. They have transferred the government of Cuba to the Cuban people amid universal expressions of friendship and good will, and have left a record of ordered justice and liberty of rapid improvement in material and moral conditions and progress in the art of government which reflects great credit upon the people of the United States.

The President thanks the officers and enlisted men of the army in the Philippines, both regulars and volunteers, for the courage and fortitude, the indomitable spirit and loyal devotion with which they have put down and ended the great insurrection which has raged throughout the archipelago against the lawful sovereignty and just authority of the United States. The task was peculiarly difficult and trying. They were required at first to overcome organized resistance of superior numbers, well equipped with modern arms of precision, intrenched in an unknown country of mountain defiles, jungles, and swamps, apparently capable of interminable defense. When this resistance had been overcome they were required to crush out a general system of guerrilla warfare conducted among a people speaking unknown tongues, from whom it was almost impossible to obtain the information necessary for successful pursuit or to guard against surprise and ambush.

The enemies by whom they were surrounded were regardless of all obligations of good faith and of all the limitations which humanity has imposed upon civilized warfare. Bound themselves by the laws of war, our soldiers were called upon to meet every device of unscrupulous treachery and to contemplate without reprisal the infliction of barbarous cruelties upon their comrades and friendly natives. They were instructed, while punishing armed resistance, to conciliate the friendship of the peaceful, yet had to do with a population among whom it was impossible to distinguish friend from foe, and who in countless instances used a false appearance of friendship for ambush and assassination. They were obliged to deal with problems of communication and transportation in a country without roads and frequently made impassable by torrential rains. They were weakened by tropical heat and tropical disease. Widely scattered over a great archipelago, extending a thousand miles from north to south, the gravest responsibilities, involving the life or death of their comrades, frequently devolved upon young and inexperienced officers beyond the reach of specific orders or advice.

Under all these adverse circumstances the army of the Philippines has accomplished its task rapidly and completely. In more than two thousand combats, great and small, within three years, it has exhibited unvarying courage and resolution. Utilizing the lessons of the Indian wars it has

relentlessly followed the guerrilla bands to their fastness in mountain and jungle, and crushed them. It has put an end to the vast system of intimidation and secret assassination, by which the peaceful natives were prevented from taking a genuine part in government under American authority. It has captured or forced to surrender substantially all the leaders of the insurrection. It has submitted to no discouragement and halted at no obstacle. Its officers have shown high qualities of command, and its men have shown devotion and discipline. Its splendid virile energy has been accompanied by self-control, patience, and magnanimity.

With surprisingly few individual exceptions its course has been characterized by humanity and kindness to the prisoner and the non-combatant. With admirable good temper, sympathy, and loyalty to American ideals its commanding generals have joined with the civilian agents of the government in healing the wounds of war and assuring to the people of the Philippines the blessings of peace and prosperity. Individual liberty, protection of personal rights, civil order, public instruction and religious freedom have followed its footsteps. It has added honor to the flag, which it defended, and has justified increased confidence in the future of the American people, whose soldiers do not shrink from labor or death, yet love liberty and peace.

The President feels that he expresses the sentiments of all the loyal people of the United States in doing honor to the whole army which has joined in the performance and shares in the credit of these honorable services.

This general order will be read aloud at parade in every military post on the 4th day of July, 1902, or on the first day after it shall have been received.

ELIHU ROOT,
Secretary of War.

By command of Lieutenant-General Miles:

H.C. CORBIN,
Adjutant-General, Major-General, U.S.A.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA.**

A PROCLAMATION.

Whereas The Medicine Bow Forest Reserve, in the State of Wyoming, was established by proclamation dated May 22, 1902, under and by virtue

of section twenty-four of the act of Congress approved March 3, 1891, entitled "An act to repeal timber-culture laws, and for other purposes," which provides "That the President of the United States may, from time to time, set apart and reserve, in any State or Territory having public land bearing forests, in any part of the public lands wholly or in part covered with timber or undergrowth, whether of commercial value or not, as public reservations, and the President shall, by public proclamation, declare the establishment of such reservations and the limits thereof;"

And whereas it is further provided by the act of Congress approved June 4, 1897, entitled "An act making appropriations for sundry civil expenses of the Government for the fiscal year ending June 30, 1898, and for other purposes," that "The President is hereby authorized at any time to modify any executive order that has been or may hereafter be made establishing any forest reserve, and by such modification may reduce the area or change the boundary lines of such reserve, or may vacate altogether any order creating such reserve;"

And whereas the public lands in the State of Wyoming, within the limits hereinafter described, are in part covered with timber, and it appears that the public good would be promoted by setting apart and reserving said lands as a public reservation;

Now, therefore, I, Theodore Roosevelt, President of the United States, by virtue of the power vested in me by the aforesaid act of Congress approved June 4, 1897, do hereby make known and proclaim that the boundary lines of the aforesaid Medicine Bow Forest Reserve are hereby changed so as to read as follows:

Beginning at the northwest corner of township seventeen (17) north, range eighty-one (81) west, sixth (6th) Principal Meridian, Wyoming; thence easterly to the northeast corner of said township; thence southerly to the northwest corner of section thirty (30), township seventeen (17) north, range eighty (80) west; thence easterly along the section lines to the northeast corner of section twenty-five (25), said township; thence northerly to the northwest corner of township seventeen (17) north, range seventy-nine (79) west; thence easterly along the township line to the northeast corner of section five (5), township seventeen (17) north, range seventy-

eight (78) west; thence southerly along the section lines, allowing for the proper offset on the fourth (4th) Standard Parallel north, to the southeast corner of section thirty-two (32), township fourteen (14) north, range seventy-eight (78) west; thence easterly along the township line to the northeast corner of section four (4), township thirteen (13) north, range seventy-seven (77) west; thence southerly along the section lines, allowing for the proper offset on the third (3d) Standard Parallel north, to the point of intersection with the boundary line between the States of Wyoming and Colorado; thence westerly along said state boundary line to the point of intersection with the range line between ranges eighty (80) and eighty-one (81) west; thence northerly along said range line, allowing for the proper offset on the third (3d) Standard Parallel north, to the southeast corner of township fourteen (14) north, range eighty-one (81) west; thence westerly to the southwest corner of said township; thence northerly along the range line, allowing for the proper offset on the fourth (4th) Standard Parallel north, to the northwest corner of township seventeen (17) north, range eighty-one (81) west, the place of beginning.

Excepting from the force and effect of this proclamation all lands which may have been, prior to the date hereof, embraced in any legal entry or covered by any lawful filing duly of record in the proper United States Land Office, or upon which any valid settlement has been made pursuant to law, and the statutory period within which to make entry or filing of record has not expired: *Provided*, that this exception shall not continue to apply to any particular tract of land unless the entryman, settler, or claimant continues to comply with the law under which the entry, filing, or settlement was made.

Warning is hereby expressly given to all persons not to make settlement upon the lands reserved by this proclamation.

The lands hereby excluded from the said reserve and restored to the public domain shall be open to settlement from date hereof, but shall not be subject to entry, filing, or selection until after ninety days' notice by such publication as the Secretary of the Interior may prescribe.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this sixteenth day of July, A.D. 1902, and of the Independence of the United States the one hundred and twenty-seventh.

THEODORE ROOSEVELT.

By the President:
JOHN HAY,
Secretary of State.

A PROCLAMATION.

Whereas the act of Congress entitled, "An act to ratify and confirm a supplemental agreement with the Creek tribe of Indians, and for other purposes," approved on the thirtieth day of June, 1902, contains a provision as follows:

That the following supplemental agreement, submitted by certain commissioners of the Creek tribe of Indians, as herein amended, is hereby ratified and confirmed on the part of the United States, and the same shall be of full force and effect if ratified by the Creek tribal council on or before the first day of September, nineteen hundred and two, * * *

And whereas the principal chief of the said tribe has transmitted to me an act of the Creek national council entitled, "An act to ratify and confirm a supplemental agreement with the United States" approved the twenty-sixth day of July, 1902, which contains a provision as follows:

That the following supplemental agreement by and between the United States and the Muskogee (or Creek) Tribe of Indians, in Indian Territory, ratified and confirmed on the part of the United States by act of Congress approved June 30, 1902 (Public—No. 200.), is hereby confirmed on the part of the Muskogee (or Creek) Nation, * * *

And whereas paragraph twenty-two provides as follows:

The principal chief, as soon as practicable after the ratification of this agreement by Congress, shall call an extra session of the Creek Nation council and submit this agreement, as ratified by Congress, to such council for its consideration, and if the agreement be ratified by the National council, as provided in the constitution of the tribe, the principal chief shall transmit to the

President of the United States a certified copy of the act of the council ratifying the agreement, and thereupon the President shall issue his proclamation making public announcement of such ratification, thenceforward all the provisions of this agreement shall have the force and effect of law.

Now, therefore, I, Theodore Roosevelt, President of the United States, do hereby declare said agreement duly ratified and that all the provisions thereof became law according to the terms thereof upon the twenty-sixth day of July, 1902.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

[SEAL.]

Done at the city of Washington, this eighth day of August, A.D. 1902, and of the Independence of the United States the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

By the President:
ALVEY A. ADEE,
Acting Secretary of State.

EXECUTIVE ORDERS.

EXECUTIVE MANSION, *September 23, 1901.*

In accordance with the provisions of the act of Congress approved June 4, 1897 (30 Stat., 34-36), and by virtue of the authority thereby given, and on the recommendation of the Secretary of the Interior, it is hereby ordered that sections 23, 24 of township seven south, range 93 west, 6th principal meridian, Colorado, within the limits of the Black Mesa Forest Reserve be restored to the public domain after sixty days' notice hereof by publication, as required by law; these tracts having been found upon personal and official inspection to be better adapted to agricultural than forest purposes.

THEODORE ROOSEVELT.

TO ALL WHOM THESE PRESENTS SHALL COME, GREETING:

Know ye that reposing special trust and confidence in the integrity, prudence, and ability of Thaddeus S. Sharretts, United States General Appraiser, I have invested him with full and all manner of authority for and in the name of the United States of America, to meet and confer with any person or persons duly authorized by the government of China or by any government or governments having treaties with China being invested with like power and authority, and with him or them to agree on a plan for the conversion into specific duties, as far as possible, and as soon as may be, of all *ad valorem* duties on imports into China in conformity with the provisions in this regard contained in the final protocol signed by the diplomatic representatives of China and the Powers at Peking on September 7, 1901, the same to be submitted to the President of the United States for approval.

In testimony whereof I have caused the seal of the United States to be hereunto affixed.

[SEAL.]

Given under my hand at the city of Washington, this first day of October, A.D. 1901, and, of the Independence of the United States, the one hundred and twenty-sixth.

THEODORE ROOSEVELT.

October 15, 1901.

On and after January 1, 1902, the following ratings and pay per month are established for the petty officers and other enlisted men of the Commissary Branch of the United States Navy:

RATING.	MONTHLY PAY.
Chief Commissary Steward	\$70
Commissary Steward	60
Ship's Cook, 1st class	55
Ship's Cook, 2d class	40
Ship's Cook, 3d class	30
Ship's Cook, 4th Class	25
Baker, 1st class	45
Baker, 2d class	35

Landsmen detailed as crew messmen shall while so acting except when appointed as reliefs during temporary absence of the regular crew messmen receive extra compensation at the rate of \$5 per month.

THEODORE ROOSEVELT.

WHITE HOUSE, *October 30, 1901.*

It is hereby ordered that Harbor Island, and three islets southeast thereof in Sitka Harbor, District of Alaska, be and they are hereby reserved for the use of the Revenue Cutter Service subject to any legal existing rights.

THEODORE ROOSEVELT.

WHITE HOUSE, *November 9, 1901.*

It is hereby ordered that all tracts and parcels of land belonging to the United States situate in the provinces of Zambales and Bataan, in the Island of Luzon, Philippine Islands to the southward and westward of a line beginning at the mouth of the Rio Pamatuan, near Capones Islands, and following the imaginary course of the Pamatuan to the headwaters of the easternmost branch of said river; from thence east, true, to meet a line running north, true, from Santa Rita Peak; from this intersection to Santa Rita itself; thence to Santa Rosa Peak, and thence in a straight line in a southerly direction to the sea at the town of Bagac, and including said town as well as all adjacent islands, bays, harbors, estuaries, and streams within its limits, be and the same are hereby reserved for naval purposes, and said reservations and all lands included within said boundaries are hereby placed under the governance and control of the Navy Department.

THEODORE ROOSEVELT.

WHITE HOUSE, *November 11, 1901.*

It is hereby ordered that the southwest quarter, section twenty-nine, and the southeast quarter, section thirty, township one south, range eighteen west, San Bernardino base and meridian, California, be and they are hereby reserved for lighthouse purposes, subject to any legal existing rights.

THEODORE ROOSEVELT.

WHITE HOUSE, *November 15, 1901.*

It is hereby ordered that San Nicolas Island, California, be and it is hereby reserved for lighthouse purposes.

THEODORE ROOSEVELT.

November 26, 1901.

From and after January 1, 1901, all enlisted men of the Navy will be allowed seventy-five cents per month in addition to the pay of their ratings for each good conduct medal, pin, or bar, issued for service, terminating after December 31, 1901.

THEODORE ROOSEVELT.

WHITE HOUSE, *December 3, 1901.*

From and after January 1, 1902, each enlisted man of the Navy who holds a certificate as a credit from the Petty Officers' School of Instruction, Navy Training Station, Newport, R.I., shall receive two dollars per month in addition to the pay of his rating.

THEODORE ROOSEVELT.

WHITE HOUSE, *December 9, 1901.*

From and after January 1, 1902, the classification and monthly pay of Mess Attendants in the United States Navy shall be as follows:

Mess Attendants, 1st class	\$24
Mess Attendants, 2d class	20
Mess Attendants, 3d class	16

THEODORE ROOSEVELT.

WHITE HOUSE, *December 19, 1901.*

Such public lands as may exist on Culebra Island between the parallels of 18° 15' and 18° 23' north latitude, and between the meridians of 65° 10' and 65° 25' west longitude, are hereby placed under the jurisdiction of the Navy Department.

THEODORE ROOSEVELT.

January 17, 1902.

The attention of the Departments is hereby called to the provisions of the laws giving preference to veterans in appointment and retention.

The President desires that wherever the needs of the service will justify it and the law will permit preference shall be given alike in appointment and retention to honorably discharged veterans of the Civil War, who are fit and well qualified to perform the duties of the places which they seek or are filling.

THEODORE ROOSEVELT.

January 31, 1902.

All officers and employees of the United States of every description serving in or under any of the Executive Departments and whether so serving in or out of Washington are hereby forbidden either direct or indirect, individually or through associations, to solicit an increase of pay, or to influence or to attempt to influence in their own interest any legislation whatever, either before Congress or its Committees, or in any way save through the heads of the Departments in or under which they serve, on penalty of dismissal from the government service.

THEODORE ROOSEVELT.

February 5, 1902.

As it is desirable in view of the expected visit of his Royal Highness, Prince Henry of Prussia, to the United States that suitable arrangements should be made for his reception and entertainment during his sojourn in the United States, I hereby designate the following named persons to serve as delegates for this purpose, and do hereby authorize and empower them to make such engagements, incur such expenses, and to draw upon the Secretary of State for such moneys as may be necessary with which to pay the expenses thus incurred, to an amount to be determined by the Secretary of State.

The Assistant Secretary of State, David J. Hill, representing the Department of State.

Major-General Henry C. Corbin, Adjutant-General, U.S.A., representing the War Department.

Rear-Admiral Robley D. Evans, U.S.N., representing the Navy Department, and to be Honorary A.D.C. to his Royal Highness.

The following officers are detailed to assist the delegates:

Colonel T.A. Bingham, U.S.A., Military Aide to the President;
Commander W.S. Cowles, U.S.N., Navy Aide to the President.

THEODORE ROOSEVELT.

WHITE HOUSE, *February 15, 1902.*

In accordance with the provisions of Section 2212 of the Revised Statutes and by virtue of the authority thereby given, it is hereby ordered that the office of Surveyor-General in the surveying district of the Territory of Arizona, be and it is hereby located at Phoenix, Arizona, and the office of Surveyor-General at Tucson, Arizona, is hereby discontinued, and the records and business thereof are hereby transferred to the office of Surveyor-General at Tucson, Arizona.

THEODORE ROOSEVELT.

March 24, 1902.

Paragraph 451 of the Consular Regulations of 1896 is hereby amended by the addition of the following:

No consular officer shall accept an appointment to office from any foreign state as administrator, guardian or any other fiduciary capacity for the settlement or conservation of the estate of deceased persons, or of their heirs or of other persons under legal disabilities, without having been previously authorized by the Secretary of State to do so.

THEODORE ROOSEVELT.

WHITE HOUSE, *March 26, 1902.*

It is hereby ordered that the building known as the "office" and a tract of land 200 feet square, the center of which shall be identical with that of the building, and the sides of which shall be parallel with those of the building in the limits of the Fort Yuma Abandoned Military Reservation, Arizona, be and they are hereby reserved and set apart for the use of the Weather Bureau.

THEODORE ROOSEVELT.

To the Heads of the Executive Departments:

As a mark of respect to the memory of the Right Honorable Lord Pauncefote, of Preston, Late Ambassador Extraordinary and Plenipotentiary of Great Britain to the United States, the President directs that the National flag be displayed at half-mast upon the White House and other federal buildings in the city of Washington on Wednesday, March 28, 1902, the day of the funeral.

GEORGE B. CORTELYOU,
Secretary to the President.

WHITE HOUSE, *April 29, 1902.*

To the Heads of the Executive Departments:

As a mark of respect to the memory of J. Sterling Morton, formerly Secretary of Agriculture, the President directs that the National flag be displayed at half-mast upon the White House and other federal buildings in the city of Washington on Wednesday, April 30, 1902, the day of the funeral.

GEORGE B. CORTELYOU,
Secretary to the President.

WHITE HOUSE, *April 29, 1902.*

It is hereby ordered that the building known as the "Residence" and the tract of land bounded on the north, east, and south by the rights of way grant to the Yuma Pumping Irrigation Company by the act of Congress approved January 20, 1893 (27 Stat., 420), and on the west by the east line of the tract reserved by Executive Order of March 26, 1902, for the Weather Bureau and the extension thereof to intersections with the rights of way herein mentioned in the limits of the Fort Yuma Abandoned Military Reservation, Arizona, be and they are hereby reserved and set apart for the Customs Service.

THEODORE ROOSEVELT.

WHITE HOUSE, *April 30, 1902.*

It is hereby ordered that the northwest quarter of the northwest quarter and lot 4 of section 32, township one south, range 18 west, San Bernardino base and meridian, California, be and they are hereby reserved for light-house purposes, subject to any legal existing rights.

THEODORE ROOSEVELT.

May 12, 1902.

It is hereby ordered that such employees of the Executive Departments, the Government Printing Office, and the Navy Yard and Station at Washington, D.C., as served in the Military or Navy service of the United States in the late Civil War shall be excused from duty on Saturday, the 17th

instant, to enable them to attend the ceremonies incident to the reburial of the late Major-General W.S. Rosecrans.

THEODORE ROOSEVELT.

WHITE HOUSE, *May 12, 1902.*

It is hereby ordered that upon Wednesday, the 21st instant, such employees of the Executive Departments, the Government Printing Office, and the Navy Yard and Station at Washington, D.C., as served in the military or naval service of the United States in the Spanish-American War, or the insurrection in the Philippine Islands, shall be excused from duty at 12 o'clock noon for the remainder of that day, to enable them to participate in the ceremonies incident to the dedication of a statue erected to the memory of the Spanish War dead at Arlington.

THEODORE ROOSEVELT.

WHITE HOUSE, *June 13, 1902.*

It is hereby ordered that the southwest quarter section thirty-four township twenty-three north, range one east, Willamette Meridian, Washington, be and it is hereby reserved and set apart for the use of the Navy Department for the purposes of a target range.

THEODORE ROOSEVELT.

WHITE HOUSE, *July 10, 1902.*

No enlisted person in the Navy service of the United States shall be discharged therefrom prior to the completion of his term of enlistment, except for one of the following causes: Undesirability, inaptitude, physical or mental disability, or unfitness.

In every case, the recommendation for such discharge must be made by the commanding officer of the vessel on which the man may be serving.

Applications for discharges which reach the department except through the commanding officers of vessels shall be without exception disregarded.

THEODORE ROOSEVELT.

OYSTER BAY, *July 19, 1902.*

The act of Congress approved June 14, 1902, having amended the Revised Statutes of the United States so as to permit of the issuance of passports to persons owing allegiance to the United States, whether citizens of the United States or not, and under such rules as the President shall designate and prescribe on behalf of the United States, the instructions to the diplomatic officers of the United States and the United States Consular regulations are hereby so modified and amended as to permit diplomatic and consular officers of the United States having authority to issue passports to issue them to residents of the Insular Possessions of the United States who make satisfactory application. Each applicant under this provision must state in addition to the information now required in the application of a citizen of the United States that he owes allegiance to the United States and that he does not acknowledge allegiance to any other government and must submit an affidavit from at least two credible witnesses having good means of the knowledge in substantiation of his statements of birth and residence and loyalty. The same fee shall be collected by diplomatic and consular officers of the United States for issuing passports to residents of the Insular Possessions as is now required for issuing passports to citizens of the United States.

THEODORE ROOSEVELT.

WHITE HOUSE, *Washington, July 22, 1902.*

By virtue of the authority vested in me by the act of Congress approved July 1, 1902, entitled "An act authorizing the President to reserve public lands and buildings in the Island of Puerto Rico for public uses, and granting other public lands and buildings to the government of Puerto Rico and for other purposes," Miraflores Island in the Harbor of San Juan, Puerto Rico, is hereby reserved for use as a quarantine station or a site for a marine hospital or for both said purposes under the control of the Public Health and Marine Hospital service of the United States.

THEODORE ROOSEVELT.

WHITE HOUSE, *July 25, 1902.*

It is hereby ordered under the provisions of section 4 of the act of Congress approved April 12, 1902, "To promote the efficiency of the Revenue Cutter Service," that the Secretary of the Treasury shall "by direction of the President" when officers of the Revenue Cutter Service reach the age limit of 64 years, retire from them active service.

THEODORE ROOSEVELT.

WHITE HOUSE, *August 1, 1902.*

From and after July 1, 1902, each enlisted man that has been rated Seaman Gunner prior to April 1, 1902, or that holds certificate of graduation from the Petty Officers' Schools, Seaman Gunner Class, shall receive \$2.00 per month in addition to the pay of his rating during current and subsequent enlistments.

THEODORE ROOSEVELT.

WHITE HOUSE, *August 9, 1902.*

It is hereby ordered that the south half of the southeast quarter and the southwest quarter of section 3, township 22 north, range 26 west, 6th principal meridian, Nebraska, be, and they are hereby, reserved and set apart for the use of the Department of Agriculture for purposes in connection with experimental tree planting.

THEODORE ROOSEVELT.

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Bulgaria.—Population (1900), 3,733,189.

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